

1. RESIDENCY AND FINANCIALS

1.1 PARTIES INVOLVED

Date: 12/23/2024

Kathleen Titano ("Landlord"), by and through PURE Property Management, Inc. ("Agent"), Landlord's exclusive agent and representative, and Taylor A. Bathel ("Tenant") hereby enter into this lease ("Agreement") governed by the following terms, conditions, covenants, and responsibilities:

1.2 PROPERTY AND OCCUPANTS

Landlord rents to Tenant and Tenant rents from Landlord the real property located at and described as 3056 Nile Street

San Diego, CA 92104-4810

("Property"). The Property shall be used as a residence only. Tenant is not permitted to use Property as a business. The Property is rented to Tenant for the sole use, enjoyment, and residence of Tenant and

("Other Occupants"). Occupancy by anyone other than a Tenant or Other Occupant for more than ten nights in any month shall constitute a breach of the Agreement unless Landlord provides written consent.

All tenants shall be individually and completely responsible for the performance of all obligations of Tenant under this Agreement, jointly with every other Tenant, and individually, whether or not in possession.

1.3 TERM; POSSESSION.

The Agreement begins on 12/23/2024 ("Commencement Date.") The Agreement shall terminate on 12/21/2025 ("Termination Date") at 11:59 p.m.

If Tenant has not paid all amounts due as of the Commencement Date, Tenant has no right to possession or keys to the premises and this Agreement is voidable at the option of Landlord 2 days after giving Tenant a written notice to pay. Notice may be delivered to Tenant (1) in person; (2) by mail to Tenant's last known address; or (3) by email, if provided in Tenant's application or previously used by Tenant to communicate with Landlord. If Landlord elects to void the lease, Landlord shall refund to Tenant all rent and security deposit paid.

Written notice is required by either party to terminate this Agreement at the scheduled lease expiration date. **If no notice is given by either party, this Agreement will continue on a month-to-month basis.** Tenant may then terminate this Agreement by providing thirty days' written notice. Landlord may terminate the tenancy by providing written notice as required by law.

Tenant is not in possession of Property at the time of contract execution. If Landlord is unable to deliver possession of Property on Commencement Date, such Date shall be extended to the date on which possession is made available to Tenant. If Landlord is unable to deliver possession within 5 calendar days after Commencement date, Tenant may terminate this Agreement by giving written notice to Landlord and shall be refunded all rent and security deposit paid.

1.4 RENT AND PAYMENT.

Tenant shall pay Landlord \$ \$2,195.00 per month for the term of the Agreement as base rent.

“Rent” shall mean all monetary obligations of Tenant to Landlord under the terms of the Agreement, including any recurring charges as set forth in this Agreement. Rent is payable in advance on the 1st day of each calendar month and is delinquent on the next day. The first month’s rent under the Agreement shall be as prescribed in Section 4. **The total monthly rent to be paid may include additional sums as set forth more fully in this Agreement, including, for example and without limitation, a Resident Benefit Package fee, the cost of utilities, or pet fees.**

Rent shall be paid via PURE’s tenant portal or other forms of payment authorized by applicable law, excluding cash payments.

X

Taylor A. Bathel

1.5 SECURITY DEPOSIT AND MOVE-IN COSTS.

☒ Tenant agrees to pay \$ \$2,195.00 as a security deposit. Security deposit shall be held by Landlord or Agent according to law. **Security deposit shall not be used by Tenant in lieu of payment of Rent.** Security deposit will not be returned until all Tenants have vacated the Property and all keys returned. Any security deposit returned by check shall be made out to all Tenants named on this Agreement or as subsequently modified. No interest shall be paid on the security deposit unless required by law.

or

☐ Tenant elects to enroll in the Security Deposit Waiver Program (“SDWP”) offered by PURE Property Management to Tenant, pursuant to these and all other terms in the Agreement.

Tenant is hereby advised that, if Tenant elects to utilize the SDWP, the following terms apply:

1. The Security Deposit Waiver Program serves solely as an alternative means of ensuring security for the tenancy in lieu of the payment of the standard security deposit required by the lease agreement. The Landlord waives the one-time Security Deposit of \$ in exchange for payment of a \$ monthly non-refundable fee for the entire term of the Lease Agreement.
2. Use of and payment for the SDWP does not relieve Tenant from paying all other required costs in this Agreement, including all costs of repairing damage to the Property beyond normal wear and tear.
3. The SDWP monthly fee shall not increase during the initial term of this agreement but may be raised at time of renewal.
4. If Tenant defaults on the SDWP, Tenant shall be obligated to tender a traditional security deposit in the amount of one month’s base rent within 30 days of the default date. A default in the SDWP shall not adversely affect Tenant’s credit rating if Tenant timely pays the security deposit according to the terms of this Agreement.
5. Tenant may elect to terminate use of the SDWP by giving written notice to PURE Property Management no less than thirty days in advance of the date Tenant wishes to terminate the SDWP. If Tenant terminates use of the SDWP, Tenant must tender to PURE Property Management the security deposit amount calculated in the lease as a traditional security deposit at the time Tenant provides written notice of Tenant’s intent to terminate. Upon switching to the traditional security deposit election, the terms of the security deposit shall be as written in this Agreement.

6. No cancellation fees shall be owed as a result of Tenant's timely termination of the SDWP election and tendering of the new security deposit, per section (e).
7. Should the Landlord terminate management with PURE PM for any reason, provision of SDWP coverage will immediately cease and the Tenant must submit the traditional Security Deposit amount required in full to the landlord.
8. Should a three day notice to pay or quit be issued to the Tenant and the Tenant fails to pay all past due amounts, and fails to quit, the SDWP coverage will immediately cease and the full security deposit amount will be added to the Tenant's ledger.
9. Should a three day notice to pay or quit be issued to the Tenant and the Tenant duly quits the premises upon receipt of the notice, the SDWP coverage will cease immediately. The tenant will be responsible for damages that exceed normal wear and tear, as determined by the move-out inspection.

Tenant is provided the following disclosure:

FEE IN LIEU OF SECURITY DEPOSIT

THIS FEE IS NOT A SECURITY DEPOSIT AND PAYMENT OF THE FEE DOES NOT RELIEVE THE TENANT OF ANY OBLIGATIONS UNDER THE RENTAL AGREEMENT, INCLUDING THE OBLIGATION TO PAY RENT AS IT BECOMES DUE AND PAY ANY COSTS AND DAMAGES BEYOND NORMAL WEAR AND TEAR WHICH THE TENANT OR HIS OR HER GUESTS MAY CAUSE.

THE TENANT MAY TERMINATE THIS AGREEMENT AT ANY TIME AND STOP PAYING THE FEE AND INSTEAD PAY THE FULL SECURITY DEPOSIT AS PROVIDED IN THE LEASE.

THIS AGREEMENT HAS BEEN ENTERED INTO VOLUNTARILY BY BOTH PARTIES AND THE TENANT AGREES TO PAY PURE PROPERTY MANAGEMENT A FEE IN LIEU OF A SECURITY DEPOSIT.

Move-in Costs shall be paid to Landlord on or before the Commencement Date by Cashier's Check or Electronic Transfer only.

1.6 LATE CHARGE; RETURNED CHECKS.

Rent is due on the first day of every month. If Rent is not paid on or before the first day of every month, it is considered late and delinquent.

Tenant acknowledges either late payment of Rent or issuance of a returned check may cause Landlord to incur costs and expenses, the exact amounts of which are extremely difficult and impractical to determine. These costs may include, but are not limited to, processing, enforcement and accounting expenses, and late charges imposed on Landlord. Landlord shall apply a late charge of \$150.00 if Rent is not paid on or before the third day of each month. No exceptions shall be made if the first or third day is a weekend or holiday.

Tenant shall pay to Landlord an additional sum of \$25.00 as a NSF fee for the first returned check and \$35.00 as a NSF fee for each additional returned check.

Landlord and Tenant agree that these charges represent a fair and reasonable estimate of the costs Landlord may incur by reason of Tenant's late or NSF payment. Any Late Charge or NSF fee due shall be paid with the current installment of Rent. Landlord's acceptance of any Late Charge or NSF fee shall not constitute a waiver as to any default of Tenant. Landlord's right to collect a Late Charge or NSF fee shall neither be deemed an extension of the date Rent is due under paragraph 3 nor prevent Landlord from exercising any other rights and remedies under this Agreement and as provided by law.

All payments shall be first applied to the oldest outstanding obligations, with any remainder to be applied to current obligations, unless prohibited by law.

1.7 UTILITIES.

Tenant shall pay all utilities at Property except \$50 tenant chargeback on wifi and trash , which shall be paid for by Landlord. If any utilities are not separately metered, Tenant shall pay Tenant's proportional share, as reasonably determined and directed by Landlord and pursuant to this Agreement. Landlord is responsible for installing and maintaining one usable telephone jack and one telephone line to the Property. Tenant shall pay any cost for conversion from existing utilities service provider. Tenant is solely responsible for setup and maintenance of any account with any utility service provider other than those paid for by Landlord as named in this section.

TENANT ACKNOWLEDGES RESPONSIBILITY FOR MAKING SURE ALL UTILITIES ARE ACTIVE PRIOR TO MOVE IN AND SHALL REMAIN ACTIVE DURING THE ENTIRE TERM OF THIS AGREEMENT OR UNTIL TENANT RELINQUISHES POSSESSION OF THE PROPERTY, WHICHEVER COMES LATER. Tenant will make sure all Utilities are permitted to be transferred back to Landlord after the end of this Agreement.

By initialing below, you acknowledge and agree to the terms in Section 1.

X _____
Taylor A. Bathel

2. POLICIES AND PROCEDURES

2.1 KEYS AND LOCKS.

Tenant may not remove locks, even if installed by Tenant.

In the event the Property is equipped with keyless entry at the front door, Tenant will be provided a code for keyless entry on the date on which the Tenant intends to take possession of the property and no keys will be provided to the Tenant for any of the doors other than storage areas, if any. Landlord, at its sole discretion, may elect to replace the keyless entry with a simple passage knob before Tenant takes possession of the Property, in which case Tenant will be provided keys in accordance with this Agreement.

If Tenant does not return all keys at the end of this Agreement's term, Landlord has the right to replace the keys or re-key locks at Tenant expense and Tenant will be assessed a fee for each key/fob/remote not returned. The Tenant shall not alter or add to the locking system on any entry or interior door of the property without written permission of the Landlord. Tenant is prohibited from adding, changing or in any way altering locks installed on the doors of the Property without prior written permission of Landlord. Unauthorized changes to the locks shall be corrected and charged to Tenant at vendor cost plus an administration fee.

2.2 CONDITION OF PROPERTY.

Tenant has examined Property and, if any, all furniture, furnishings, appliances, landscaping and fixtures, including smoke alarm(s) and carbon monoxide detector(s). Landlord will deliver to Tenant a Statement of Condition form on or before the Commencement Date. Tenant shall complete and return

the Statement of Condition form within 3 days after Commencement Date. Tenant's failure to complete and return the Statement of Condition form or otherwise inform Landlord in writing within that time shall conclusively be deemed Tenant's Acknowledgement of the condition as stated in the Statement of Condition form.

All carpeting was professionally cleaned prior to Tenant's occupancy. At the termination of this Agreement, Tenant shall be responsible for professional cleaning of the carpets. Tenant may choose to employ a professional, insured and bonded vendor to perform such work, or Tenant may elect to pay Landlord to hire a vendor of Landlord's choosing. Final carpet condition is subject to the approval of Landlord, and if Tenant's carpet cleaning was insufficient, Tenant remains responsible for the cleaning at Landlord's direction and Tenant's expense. Landlord is permitted to use security deposit to complete carpet cleaning.

2.3 MAINTENANCE; USE; REPORTING; ALTERATIONS AND REPAIRS; TEMPORARY RELOCATION.

Tenant shall properly use, operate and safeguard Property including, if applicable, any landscaping, furniture, furnishings and appliances, and all mechanical, electrical, gas and plumbing fixtures, carbon monoxide detector(s) and smoke alarms, and keep them and the Property clean, sanitary and well ventilated. Tenant shall replace any burned out or malfunctioning light bulbs. Tenant shall immediately notify Landlord, in writing, of any problem, malfunction or damage with any item including filters, carbon monoxide detector(s) and smoke alarms on the property. Tenant shall be charged for all repairs or replacements caused by Tenant, animals, guests or licensees of Tenant, excluding ordinary wear and tear. Tenant shall be charged for all damage to Property as a result of failure to report a problem in a timely manner. Tenant shall be charged for repair of drain blockages or stoppages, unless caused by defective plumbing parts or tree roots invading sewer lines.

TENANT SHALL PERIODICALLY INSPECT ALL SMOKE DETECTORS AND CARBON MONOXIDE DETECTORS AND REPORT ANY MALFUNCTION OR SUSPECTED DEFECT TO LANDLORD IMMEDIATELY.

Landlord shall be responsible for watering and maintaining the garden, landscaping, trees and shrubs in any common areas of the Property. Tenant shall be responsible for watering and maintaining the garden, landscaping, trees, and shrubs in any private or personal areas of the Property.

Tenant shall at all times be responsible for keeping all of the foregoing exterior areas free of garbage, debris, animal feces, or any other unsightly item. Tenant is at all times responsible for damages caused by animals, neglect, abuse, or lack of water. It is solely Tenant's responsibility to promptly report in writing any change in the appearance of the landscape due to lack of or excessive watering; and/or any prolonged failure of Landlord's landscaping services to properly maintain the landscaping.

Any State or Local water use restrictions shall supersede any obligation of Landlord or Tenant to water or maintain any area of the Property.

Tenant shall not use the Property to plant, grow, cultivate, or sell marijuana, including for private or personal use.

Unless otherwise specified by law or in this Agreement, without Landlord's prior written consent, (i) Tenant shall not make any repairs, alterations or improvements in or about the Property including: painting, wallpapering, adding or changing locks, installing antenna or satellite dish(es), placing signs, displays or exhibits, or using screws, fastening devices, large nails or adhesive materials; (ii) Landlord shall not be responsible for the costs of alterations or repairs made by Tenant; (iii) Tenant shall not deduct from Rent the costs of any repairs, alterations or improvements; and (iv) any unauthorized deduction made by Tenant shall be treated as unpaid Rent.

Subject to local law, Tenant agrees, upon demand of Landlord, to temporarily vacate Property for a reasonable period, to allow for fumigation (or other methods) to control wood destroying pests or organisms, or other repairs to Property. Tenant agrees to comply with all instructions and requirements necessary to prepare Property to accommodate pest control, fumigation or other work, including bagging or storage of food and medicine, and removal of perishables and valuables. Tenant shall only be entitled to a credit of Rent equal to the per diem Rent for the period of time Tenant is required to vacate Property.

2.4 INSURANCE.

LANDLORD ADVISES TENANT TO PURCHASE RENTER'S INSURANCE FOR THE DURATION OF THE RENTAL TERM.

Tenant agrees to carry liability insurance to protect Tenant from any such loss or damage and to name Landlord as "Additional Insured." Policy must be maintained from an A-rated insurance carrier. **Policy coverage shall include a minimum liability insurance policy of \$100,000.** No additional insurance will be required for an approved emotional/assistance animal. Tenant agrees to maintain coverage throughout their occupancy and is required to produce evidence of continuing coverage upon renewal each period. Failure to maintain personal liability insurance is an incurable breach of this Agreement and may result in termination of tenancy and eviction and/or any other remedies provided by this Agreement or Law.

Personal property of Tenant and/or guests of Tenant are not insured by Landlord against loss or damage due to fire, theft, vandalism, rain, water damage, pipe leaks, electrical outage, criminal or negligent acts of others, or any other cause.

Tenant is hereby notified that in the event of a loss or damage to the premises or the property within, due to Tenant negligence or malfunction of Tenant's property, Tenant is responsible for all damage and loss to the Property to include but not limited to: cleanup, repairs, and replacement expenses to restore property and premises to original condition prior to the loss.

Neither Landlord nor any person working for Landlord will be liable to Tenant for any damage or injury to Tenant or any other person or any personal property on the Property or the common areas unless it is caused solely by a deliberate or negligent act of Landlord. Neither Landlord nor any person working for Landlord will be liable for the acts of any other resident of any other unit near the Property, or any other person, in the area around the Property or the common area.

2.5 TENANT INFORMATION AND DATA; COMMUNICATIONS.

Tenant acknowledges that Landlord and Landlord's agents may collect Tenant's personal information, including but not limited to Tenant's name, date of birth, social security number, spousal information, address, phone number, and e-mail address for the purpose of qualifying and enrolling Tenant into the RBP programs and reporting payment information to credit bureaus.

Tenant acknowledges and consents to periodic communication about this Agreement, Tenant's relationship with Agent, and the Property by telephone, text message, and/or electronic mail. Agent may contact Tenant at: (1) the telephone number(s) and/or email address(es) provided in this Agreement or in Tenant's application(s) to Agent or Landlord for the lease of any property owned or operated by Agent or Landlord; or (2) any future and/or updated telephone number(s) or email address(es) that Tenant provides to or uses to communicate with Agent or Landlord. If Tenant defaults in payment of Rent or any other obligation in this Agreement, Tenant permits Landlord and Agent to share any personal information of Tenant with any third party for the purposes of collecting any

outstanding balance from Tenant.

2.6 ENTRY TO PROPERTY; SIGNS.

Tenant shall make Property available to Landlord or Landlord's representative for the purpose of entering to make necessary or agreed repairs. Tenant agrees that Landlord, Broker and Interested Persons may take photos of the Property.

Landlord and Tenant agree that 24-hour written notice shall be reasonable and sufficient notice, except as follows: (1) 48-hour written notice is required to conduct an inspection of the Property prior to the Tenant moving out, unless the Tenant waives the right to such notice. (2) If Landlord has in writing informed Tenant that the Property is for sale and that Tenant will be notified orally to show the premises, then, for the next 120 days following the delivery of the Notice of Sale and Entry ("NSE"), notice may be given orally to show the Property to actual or prospective purchasers. (3) No written notice is required if Landlord and Tenant orally agree to an entry for agreed services or repairs if the date and time of entry are within one week of the oral agreement. (4) No notice is required: (i) to enter in case of an emergency; (ii) if the Tenant is present and consents at the time of entry; (iii) if the Tenant has abandoned or surrendered the Property; or (4) for any repair of any smoke alarm or carbon monoxide detector.

Tenant expressly authorizes Landlord to place FOR SALE/LEASE signs on the Property.

2.7 PHOTOGRAPHS AND ADVERTISING; PERSONAL DATA, IMAGE, LIKENESS.

To effectively market the Property for sale or rental it is often necessary to provide photographs, virtual tours and other media to Interested Persons. Tenant agrees that Landlord may photograph or otherwise electronically capture images of the exterior and interior of the Property ("Images") for static and/or virtual tours of the Property by Interested Persons for use on Broker's website, the MLS, and other marketing materials and sites. Tenant acknowledges that once Images are placed on the Internet, Landlord has no control over who can view such Images and what use viewers may make of the Images, or how long such Images may remain available on the Internet.

Tenant acknowledges that prospective Interested Persons coming onto the Property may take photographs, videos or other images of the Property. Tenant understands that Landlord does not have the ability to control or prevent the taking of and use of Images by any such persons once Images are taken and/or put into electronic display on the Internet or otherwise.

2.8 DAMAGE TO PROPERTY.

If, by no fault of Tenant, Property is totally or partially damaged or destroyed by fire, earthquake, accident or other casualty that renders Property totally or partially uninhabitable, either Landlord or Tenant may terminate this Agreement by giving the other written notice. Rent shall be abated as of the date Property becomes totally or partially uninhabitable. The abated amount shall be the current monthly Rent prorated on a 30-day period. If the Agreement is not terminated, Landlord shall promptly repair the damage, and Rent shall be reduced based on the extent to which the damage interferes with Tenant's reasonable use of Property. If damage occurs as a result of an act of Tenant or Tenant's guests, only Landlord shall have the right of termination, and no reduction in Rent shall be made.

2.9 PARKING AND STORAGE.

Tenant will park vehicles on the Property at their own risk. If the property is equipped with a garage, Tenant will first use the garage to park their vehicles(s). If property is situated in an HOA, Tenant

agrees to abide by any parking regulations currently in place or amended at a later date. If property is situated in an HOA community or if there is more than one dwelling onsite, Landlord may regulate the time, manner, and place of parking all vehicles, bicycles, boats, trailers or recreational vehicles. Landlord or HOA may have unauthorized or illegally parked vehicles towed under an appropriate statute. Vehicles are prohibited from parking on the premises if they are inoperable, have no current license, take up more than one parking space, are parked in a marked handicap space without proper handicap insignia, block other vehicles from exiting, are parked in a space not dedicated to parking, including, but not limited to, grass, sidewalks, patio, and fire lanes. Tenant is prohibited from performing mechanical work/maintenance on vehicles at the Property during their tenancy.

Tenant shall store only personal property Tenant owns and shall not store property claimed by another or in which another has any right, title, or interest. Tenant shall not store any improperly packaged food or perishable goods, flammable materials, explosives, hazardous waste or other inherently dangerous material, or illegal substances.

2.10 RULES.

A. Animals and Pets. Unless provided for in State, Federal, or Local law, no animal or pet shall be kept on or about the property without Landlord's prior written consent. If an emotional/assistance animal is to be added to the household at any time during the tenancy, Tenant must provide notice to Landlord that the emotional/assistance animal has begun living at the Property, and Landlord may require disclosure of the animal's information pursuant to Federal, State, and Local laws.

Pets (including mammals, reptiles, birds, fish, and insects) are allowed only if Landlord has so authorized in writing. Tenant must remove an unauthorized animal within 24 hours of notice from Landlord or Tenant will be considered in default of this Lease Agreement. Landlord will authorize a service or assistance animal for a disabled person. Tenant is responsible for picking up after their pet/animal and ensuring proper disposal of animal waste.

Tenant is fully responsible for any damage to the premises of Landlord that may result from the maintenance of a pet or animal. Tenant agrees to pay for any and all pest (flea) control services during and upon termination of tenancy if necessary. After vacating premises, Tenant further agrees to have carpets professionally cleaned, treated for fleas, and deodorized using a company approved by Landlord.

B. Smoking. Smoking is prohibited on the Property. The prohibition on smoking expressly prohibits, without limitation, smoking cigarettes, marijuana, tobacco, or any other substance. The prohibition on smoking includes the use of electronic cigarettes, "vape," cigars, pipes, hookahs, or any other device used for consumption of the aforementioned products.

Tenant is responsible for all damage caused by smoking including, but not limited to, stains, burns, odors and removal of debris. Tenant acknowledges that in order to remove odor caused by smoking, Landlord may need to replace carpet and drapes and paint the entire premises regardless of when these items were last cleaned, replaced or repainted. Such actions and other necessary steps will impact the return of any security deposit.

C. Property, Community, and Landlord Rules. Tenant agrees to comply with all Landlord rules and regulations that are at any time posted on the Property or delivered to Tenant in the Tenant Handbook or otherwise. Tenant shall not, and shall ensure that guests, invitees, and licensees of Tenant shall not, disturb, annoy, endanger or interfere with other tenants of the building or neighbors, or use the Property for any unlawful purposes, under federal, state, or local law including, but not limited to, using, manufacturing, selling, storing or transporting illicit drugs or other contraband, or violate any law or ordinance, or commit a waste or nuisance on or about the Property.

By initialing below, you acknowledge and agree to the terms in Section 2.

X _____
Taylor A. Bathel

3. RESPONSIBILITIES

3.1 DISCLOSURES.

A. Neighborhood Conditions. Tenant is advised to satisfy himself or herself as to neighborhood or area conditions, including, but not limited to, schools, proximity and adequacy of law enforcement, crime statistics, proximity of registered felons or offenders, fire protection, other governmental services, availability, adequacy and cost of any wired, wireless internet connections or other telecommunications or other technology services and installations, proximity to commercial, industrial or agricultural activities, existing and proposed transportation, construction and development that may affect noise, view, or traffic, airport noise, noise or odor from any source, wild and domestic animals, other nuisances, hazards, or circumstances, cemeteries, facilities and condition of common areas, conditions and influences of significance to certain cultures and/or religions, and personal needs, requirements and preferences of Tenant.

B. Lead-Based Paint. In accordance with federal law, Landlord gives and Tenant acknowledges receipt of the disclosures on the attached form and a federally approved lead pamphlet.

C. Asbestos. Asbestos-containing materials, including some ceiling coatings on this property can, if damaged or disturbed, expose you to asbestos, which is known to the State of California to cause cancer. Talk to your landlord or the building manager about how and when you could be exposed to this chemical in your building. Unless otherwise noted in this Agreement, Landlord has no actual knowledge of asbestos in or on the Property; but Landlord advises Tenant that asbestos-containing construction materials are not always known and may nevertheless be present on or in the Property.

D. Bed Bugs. Landlord has no knowledge of any infestation in the Property by bed bugs. See attached Bed Bug Disclosure for further information. Tenant shall report suspected bed bug infestation to Landlord or, if applicable, property manager, and shall cooperate with any inspection for and treatment of bed bugs. Landlord will promptly notify Tenant of any units infested by bed bugs which may present a risk to the Property

E. Servicemembers Civil Relief Act. Notwithstanding anything to the contrary in this Agreement, Servicemembers Civil Relief Act applies to this Agreement and any effort to terminate it, as specified in Sections 3951 and 3955 of the Act.

F. Fair Housing And Discrimination Advisory. Federal Fair Housing Act ("FHA") Title VIII of the Civil Rights Act; 42 U.S.C. §§ 3601-3619; Prohibits discrimination in sales, rental or financing of residential housing against persons in protected classes. The Americans With Disabilities Act ("ADA") 42 U.S.C. §§12181-12189; Title III of the ADA prohibits discrimination based on disability in public accommodations; and other state and local laws may apply.

G. Time Of Essence; Entire Contract; Changes; Addenda; Severance. Time is of the essence. All understandings between the parties are incorporated in this Agreement. Its terms are intended by the parties as a final, complete and exclusive expression of their Agreement with respect to its subject matter and may not be contradicted by evidence of any prior agreement or contemporaneous oral

agreement. If any provision of this Agreement is held to be ineffective or invalid, the remaining provisions will nevertheless be given full force and effect. Neither this Agreement nor any provision in it may be extended, amended, modified, altered or changed except in writing. This Agreement is subject to California landlord-tenant law and shall incorporate all changes required by amendment or successors to such law. This Agreement and any supplement, addendum or modification, including any copy, may be signed in two or more counterparts, all of which shall constitute one and the same writing.

H. Survival. All obligations of Tenant which, by their nature, must happen after the termination of the term of this Agreement are still binding upon Tenant. The termination of the term of this Agreement does not relieve Tenant of Tenant's duties which must be completed under this Agreement.

I. Agency. PURE Property Management, Inc. ("Agent") is the exclusive agent and/or representative of the Landlord. Landlord has authorized Agent to take all action necessary to fulfill its rights and responsibilities under this Agreement. Tenant agrees to communicate only with Agent on all issues relating to or arising out of this Agreement unless given permission in a signed writing by Agent. The termination of any agreement between Agent and Landlord shall not terminate, modify, or otherwise affect this Agreement.

3.2 INCORPORATED DOCUMENTS.

Notwithstanding section 17(F), the following attached documents are incorporated in this agreement:

- Tenant Handbook
- California Fair Housing & Discrimination Advisory; Megan's Law Disclosure
- Rent Cap and Just Cause Addendum
- Resident Benefit Package Addendum
- Proposition 65 Disclosure and Addendum
- Mold, Mildew and Moisture Addendum
- Flood Hazard Addendum
- Bed Bug Addendum
- Consent to Electronic Communication
- CDPH_Mold_Booklet_Rev. 2021

☒ Lead-Based Paint *with* Lead-Based Paint Hazards Disclosure

☒ Asbestos Addendum

☒ Animal Addendum

☐ Rural Property Addendum

☐ HOA CC&Rs:

☐ Other:

☐ Other:

☐ Other:

X _____
Taylor A. Bathel

3.3 TERMINATION OF AGREEMENT; OBLIGATIONS UPON VACATING PROPERTY.

A. Upon termination of this Agreement, Tenant shall: (i) give Landlord all copies of all keys and any opening devices to Property, including any common areas; (ii) vacate and surrender Property to

Landlord, empty of all persons; and personal property belonging to Tenant (iii) vacate any/all parking and/or storage space; (iv) clean and deliver Property, as specified in paragraph C below, to Landlord in the same condition as referenced in paragraph 10; (v) remove all debris; (vi) give written notice to Landlord of Tenant's forwarding address; and (vii) .

B. All alterations/improvements made by or caused to be made by Tenant, with or without Landlord's consent, become the property of Landlord upon termination. Landlord may charge Tenant for restoration of the Property to the condition it was in prior to any unapproved alterations/improvements.

C. Right to Pre-Move-Out Inspection and Repairs: (i) After giving or receiving notice of termination of a tenancy, or before the expiration of this Agreement, Tenant has the right to request that an inspection of the Property take place prior to termination of the lease or rental. If Tenant requests such an inspection, Tenant shall be given an opportunity to remedy identified deficiencies prior to termination, consistent with the terms of this Agreement. (ii) Any repairs or alterations made to the Property as a result of this inspection (collectively, "Repairs") shall be made at Tenant's expense. Repairs may be performed by Tenant or through others, who have adequate insurance and licenses and are approved by Landlord. The work shall comply with applicable law, including governmental permit, inspection and approval requirements. Repairs shall be performed in a good, skillful manner with materials of quality and appearance comparable to existing materials. It is understood that exact restoration of appearance or cosmetic items following repairs may not be possible. (iii) Tenant shall: (a) obtain receipts for repairs performed by others; (b) prepare a written statement indicating the repairs performed by Tenant and the date of such repairs; and (c) provide copies of receipts and statements to Landlord prior to termination. Paragraph C does not apply when the tenancy is terminated pursuant to California Code of Civil Procedure § 1161(2), (3), or (4); (iv) Tenant shall, to the fullest extent permitted by law, indemnify and hold harmless Landlord and Agent for any and all claims, damages, or suits arising out of any repairs performed by or at the direction of Tenant.

3.4 BREACH OF CONTRACT; EARLY TERMINATION.

In addition to any obligations established by section 3.3, in the event of termination by Tenant prior to completion of the original term of the Agreement, Tenant shall also be responsible for lost rent, rental commissions, advertising expenses and costs necessary to ready property for re-rental. Landlord may withhold any such amounts from Tenant's security deposit.

3.5 EMERGENCY CONTACT; REPRESENTATIVE CAPACITY.

In the event of the death or other extenuating circumstances of Tenant, Tenant hereby authorizes the emergency contact person(s) as provided in the Tenant's application, or as updated from time to time by Tenant, to access the Property at a reasonable time and in the presence of Landlord or Landlord's agent or representative, and to remove the Tenant's property, including animals from the Property. Landlord is further authorized to refund the Tenant's security deposit, less lawful deductions and deductions as authorized by this Agreement, to such emergency contact person(s) or as otherwise required by law.

3.6 ASSIGNMENT AND SUBLETTING.

A. Tenant shall not sublet all or any part of Property, or parking or storage spaces, or assign or transfer this Agreement or any interest in it, without Landlord's prior written consent. Unless such consent is obtained, any assignment, transfer or subletting of Premises or this Agreement or tenancy, by voluntary act of Tenant, operation of law or otherwise, shall, at the option of Landlord, terminate this Agreement. Any proposed assignee, transferee or sublessee shall submit to Landlord an application

and credit information for Landlord's approval and, if approved, sign a separate written agreement with Landlord and Tenant. Landlord's consent to any one assignment, transfer or sublease, shall not be construed as consent to any subsequent assignment, transfer or sublease and does not release Tenant of Tenant's obligations under this Agreement.

This prohibition also applies to short term, vacation, and transient rentals such as, but not limited to, those arranged through AirBnB, VRBO, or similar services. Any violation of this prohibition is a non-curable, material breach of this Agreement. Any person who is not a Tenant, as defined herein, who occupies any portion of the Property, for any period of time whatsoever, for any compensation or consideration whatsoever (including, without limitation, the payment of money and/or trade and/or barter of other goods, services, or property occupancy rights) is NOT a guest, and such occupancy constitutes unauthorized subletting or assignment which is a substantial and material breach of this Agreement. As discussed in the Tenant Handbook, incorporated herewith, if Tenant is found to be in violation of this clause the total administrative cost of bringing Tenant and Property into compliance with this section will be charged to the Tenant. Such violation shall be grounds for termination of this Agreement by the Landlord.

B. Landlord may freely assign or transfer this Agreement or any and all of Landlord's interests in it at any time without advance notice to Tenant. Upon assignment, if any, Landlord shall inform Tenant in writing no less than five days after assignment is complete.

By initialing below, you acknowledge and agree to the terms in Section 3.

X _____
Taylor A. Bathel

4. GENERAL CLAUSES

4.1 WAIVER; NOTICE.

The express or implied waiver of any breach of this Agreement shall not be construed as a continuing waiver of the same or any subsequent breach.

Notice may be served or delivered at the following address, or at any other location subsequently identified in writing:

Landlord:

PURE Property Management

3450 Bonita Road #110, Chula Vista, CA 91910

Tenant:

Taylor A. Bathel

3056 Nile Street
San Diego, CA 92104-4810

In the event the Tenant receives written notice of pending legal action or other communication regarding Landlord or Property, Tenant will immediately contact Landlord and Agent and deliver said

notice to Landlord. Pending legal action regarding the Landlord or the Property does NOT relieve Tenant from their obligations under this Agreement unless required by law.

4.2 GOVERNING LAW.

This Agreement will be governed by and construed in accordance with the laws of the State in which the Property is located, without regard to the principles of conflicts of law thereof.

4.3 MODIFICATION; TERMINATION; FORCE MAJEURE.

This Agreement may only be amended, waived, or terminated by Landlord's representatives in writing. Any oral promises, representations or agreements by our representatives shall not be considered legally binding.

Landlord, and Landlord's Agent or other representative, shall be excused from performance of obligations if prevented from fulfilling such obligations by an act of God, strikes, epidemics, war, acts of terrorism, riots, or other occurrence, which is beyond Landlord's control.

4.4 INDEMNIFICATION

To the fullest extent allowed under California law, Tenant agrees to indemnify and hold Landlord and Agent harmless from and against any and all claims, demands, losses, injury, damages, suits and expenses (including attorney fees), of any nature, arising from or in any way related to the Tenant's, including its agents, vendors, guests and invitees, use and possession of the Property, including but not limited to, any third party claims, which occur or arise on or from the Property during the duration of the Agreement.

4.5 ATTORNEYS' FEES; LIMIT OF LIABILITY

In any dispute between the Tenant, Agent and Landlord (the "Parties") arising out of this Agreement or out of Tenant's use and possession of the Property, the prevailing party in the dispute shall be entitled to recover up to \$1,500 for reasonable attorneys' fees and costs. In no event shall an award of attorneys' fees exceed \$1,500 for any Party.

IN NO EVENT SHALL ANY PARTY BE LIABLE UNDER THIS AGREEMENT TO ANY OTHER PARTY OR ANY THIRD PARTY FOR CONSEQUENTIAL, INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE OR ENHANCED DAMAGES ARISING OUT OF, RELATING TO, OR IN CONNECTION WITH ANY BREACH OF THIS AGREEMENT, REGARDLESS OF WHETHER SUCH DAMAGES WERE FORESEEABLE, WHETHER EITHER PARTY WAS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND THE LEGAL OR EQUITABLE THEORY UPON WHICH THE CLAIM IS BASED.

TO THE FULLEST EXTENT PERMITTED BY LAW, AGENT SHALL NOT BE LIABLE TO TENANT FOR LANDLORD'S OR AGENT'S NEGLIGENT ACTS OR OMISSIONS.

TENANT EXPRESSLY WAIVES ALL CAUSES OF ACTION, KNOWN OR UNKNOWN, WHETHER IN EXISTENCE NOW OR IN THE FUTURE, AGAINST LANDLORD OR AGENT FOR ANY ALLEGED NEGLIGENT ACTS OR OMISSIONS IN CONNECTION WITH ALL DISCRETIONARY, COMMON, OR RECREATIONAL AREAS ON THE PROPERTY.

Except as required by law, Agent's aggregate liability to Tenant arising out of or relating to this Agreement or Tenant's actual or potential tenancy at the Property, whether arising out of or related to breach of contract, tort, or otherwise, shall not exceed 5% of all Rent collected under this Agreement in

the 12 months preceding the event giving rise to the claim or \$2,500.00 whichever is greater.

X _____
Taylor A. Bathel

4.6 TENANT ESTOPPEL CERTIFICATE.

Tenant shall execute and return a tenant estoppel certificate delivered to Tenant by Landlord or Landlord's agent within 3 days after its receipt. Failure to comply with this requirement shall be deemed Tenant's acknowledgment that the tenant estoppel certificate is true and correct and may be relied upon by a lender or purchaser.

4.7 REPRESENTATIONS AND WARRANTIES.

A. Tenant warrants that all statements in Tenant's rental application are accurate. Tenant and Agent hereby incorporate by reference the Tenant application as a part of this Agreement and acknowledge that the statements therein are an inducement for entering this agreement.

B. Agent requires all occupants 18 years of age or older and all emancipated minors to complete a lease rental application. Tenant acknowledges this requirement and agrees to notify Landlord when any occupant of the Property reaches the age of 18 or becomes an emancipated minor. Tenant authorizes Landlord and Agent to obtain Tenant's credit report periodically during the tenancy in connection with the modification or enforcement of this Agreement. Landlord and Agent may cancel this Agreement: (i) before occupancy begins; upon disapproval of the credit report(s), or upon discovering that information in Tenant's application is false; (ii) After commencement date, upon disapproval of an updated credit report or upon discovering that information in Tenant's application is no longer true. A negative credit report reflecting on Tenant's record may be submitted to a credit reporting agency if Tenant fails to fulfill the terms of payment and other obligations under this Agreement.

C. Landlord warrants that, unless otherwise specified in writing, Landlord is unaware of (i) any recorded Notices of Default affecting the Premise; (ii) any delinquent amounts due under any loan secured by the Property; and (iii) any bankruptcy proceeding affecting the Property.

D. Landlord warrants that the Property has safe, operable, and properly installed Carbon Monoxide Detectors, Smoke Detectors, and Water Heater(s) strapping.

E. The Property is being managed by PURE Property Management, Inc. ("Agent.") on behalf of Landlord. PURE Property Management, Inc. may be contacted at:

PURE Property Management, Inc. / DRE License #02124826

3450 Bonita Road #110, Chula Vista, CA 91910

By initialing below, you acknowledge and agree to the terms in Section 4.

X _____
Taylor A. Bathel

5. ANIMAL ADDENDUM

5.1 AGREEMENT

Pursuant to this Agreement, and unless excepted by Federal, State, or Local law, no animal shall be kept on the Property except for the animals listed below.

Landlord acknowledges the following **assistance animals** are to be kept at the Property:

Name, Species, Weight & Color

Bodhi, Goldendoodle, 75lbs

Landlord authorizes the following **pets** to be kept at the Property:

Name, Species, Weight & Color

Monthly Pet Rent

“Increased Rent for Pet” is added to advertised unit rent to determine “base rent” as identified in section 3 of the Agreement. The applicable increase in “base rent” for the identified pets is for the duration of the lease agreement, whether or not the pet is maintained at the Property.

REMINDER: Tenant agrees to maintain, and provide evidence of, a minimum \$100,000 in liability coverage on a renter's insurance policy and name Landlord as “Additional Insured.”

By signing below, you acknowledge and agree to the terms in Section 5.

X

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Taylor A. Bathei

6. ASBESTOS ADDENDUM

6.1 DISCLOSURE

It is generally presumed that asbestos-containing construction materials may be present in the buildings where you live or work. The presence of asbestos-containing materials in buildings is not unusual. Because of its excellent fire retardant and acoustical insulation qualities, asbestos was commonly used in buildings constructed prior to 1980. These asbestos-containing construction materials may be located, but not limited, to the following areas:

1. Acoustic Ceiling
2. Drywall Taping Mud
3. Vinyl Flooring
4. Ceramic Tile Mastic
5. Roof Mastic
6. Stucco

The mere presence of asbestos-containing construction materials does not necessarily present a health hazard. Health hazards may exist when asbestos-containing materials are damaged, and fibers are released into the air. Exposure to airborne asbestos fibers may cause lung disease, cancer and other serious illnesses.

To prevent damage to asbestos-containing construction materials and minimize disturbance, release, and exposure to asbestos, the Tenant must follow these precautions:

1. Do not cut, drill holes or make any penetrations into linoleum, floor tiles, drywall walls and ceilings, or shower enclosures. Should any areas containing asbestos become disturbed, do not vacuum or remove from the area. Immediately contact the Agent for assistance.

If you have any further questions pertaining to this asbestos notification or require additional information, you may contact the on-site rental office, or the address below:

PURE Property Management

3450 Bonita Road #110, Chula Vista, CA 91910

Violation of these instructions are deemed a material breach and may subject the Resident to legal action.

By signing below, you acknowledge and agree to the terms in Section 6.

X

Lessee

Taylor A. Bathel

7. Mandatory California Addendums

7.1 BED BUG ADDENDUM

BED BUG INFORMATION:

1. **Appearance:** Bed bugs have six legs. Adult bed bugs have flat bodies about $\frac{1}{4}$ of an inch in length, and young bed bugs may be smaller. When a bed bug feeds, its body swells and may lengthen. It may also become bright red, occasionally making the bed bug appear as a different insect altogether. Bed bugs do not fly. They can either crawl or be carried from place to place on objects, people, or animals. Bed bugs can be hard to find and identify due to their small size and tendency to stay hidden.
2. **Life Cycle and Reproduction:** An average bed bug lives for about 10 months. Female bed bugs lay one to five eggs per day. Bed bugs grow to full adulthood in about 21 days and can survive for months without feeding.
3. **Bed Bug Bites:** Because bed bugs usually feed at night, most people suffer bed bug bites in their sleep without realizing they were bitten. A person's reaction to insect bites is an immune response and so varies from person to person. Sometimes the red welts caused by the bites will not be noticed until many days after a person was bitten, if at all.
4. **Common signs and symptoms of a possible bed bug infestation:**
 - Small red to reddish brown fecal spots on mattresses, box springs, bed frames, mattresses, linens, upholstery, or walls.
 - Molted bed bug skins, white, sticky eggs, or empty eggshells.
 - Very heavily infested areas may have a characteristically sweet odor.
 - Red, itchy bite marks, especially on the legs, arms, and other body parts exposed while sleeping. However, some people do not show bed bug lesions on their bodies despite having been bitten.
5. For more information, see the website of the United States Environmental Protection Agency at www.epa.gov/bedbugs, and the National Pest Management Association at npmapestworld.org/public-policy/public-health/bedbugs.

TENANT RESPONSIBILITIES:

Tenant hereby agrees to prevent and control possible infestation by adhering to the below list of responsibilities:

- **Tenant shall immediately report, in writing, any suspected or potential bed bug presence to Agent.** . Even a few bedbugs can rapidly multiply to create a major infestation and spread to other units.
- Check for hitch-hiking bedbugs. Upon staying in a hotel, rental property, or any other residence, Tenant must immediately inspect all clothing, luggage, shoes and personal belongings for signs of bedbugs before re-entering the property. Tenant must also inspect backpacks, shoes and clothing after using public transportation, or visiting theaters. After guests visit the property, inspect beds,

bedding and upholstered furniture for signs of bedbug infestation.

- Tenant shall cooperate with pest control efforts. If Tenant's or a neighbor's unit becomes infested, a pest management professional may be called in to eradicate the problem. Tenant must properly prepare the property for treatment.
- Tenant must comply with any and all recommendations and requests from the pest control specialist prior to professional treatment, including but not limited to:
 1. Placing all bedding, drapes, curtains and small rugs in bags for transport to laundry or dry cleaners.
 2. Heavily infested mattresses are not salvageable. They must be sealed in plastic and disposed of properly.
 3. Empty any dressers, nightstands and closets. Remove all items from floors and bag all clothing, shoes, boxes, toys, etc. Tightly seal washable and non-washable items separately. Used bags must be disposed of properly.
 4. Vacuum all floors, including inside closets. Vacuum all furniture including inside drawers and nightstands. Vacuum mattresses and box springs. Carefully remove vacuum bags sealing them tightly in plastic and discarding them properly.
 5. Wash all machine-washable bedding, drapes, and clothing, etc., on the hottest water temperature and dry on the highest heat setting. Take any other items to a dry cleaner and inform the cleaner that the clothes may be infested with bedbugs. Discard any items that cannot be de-infested.
 6. Move furniture toward the center of the room so that technicians can easily treat carpet edges where bedbugs congregate, as well as walls and furniture surfaces. Be sure to leave easy access to closets.

TENANT ACKNOWLEDGEMENT:

Tenant agrees to indemnify and hold the Landlord harmless from any actions, claims losses, damages and expenses including but not limited to attorneys' fees that Landlord may incur as a result of the negligence of the Tenant(s) or any guest occupying or using the premises.

Tenant acknowledges that the Landlord has inspected the property and is aware of no present bed bug infestation. Tenant represents and warrants that all furnishings and personal belongings to be moved into the property are free of bed bugs.

It is further acknowledged that, unless expressly prohibited by governing regulations, the Landlord shall not be liable for any loss of Tenant's personal property resulting from bed bug infestation. Tenant agrees to have personal property insurance to cover any such losses.

By signing below, the undersigned Tenant(s) agree and acknowledge having read and understood this addendum. Again, **Tenant shall *immediately* report, in writing, any suspected or actual bed bug presence to Agent.**

X _____
Taylor A. Bathel

DISCLOSURE:

1. EQUAL ACCESS TO HOUSING FOR ALL: All housing in California is available to all persons. Discrimination, as noted below, is prohibited by law. Resources are available for those who have experienced unequal treatment under the law.

2. FEDERAL AND STATE LAWS PROHIBIT DISCRIMINATION AGAINST IDENTIFIED PROTECTED CLASSES:

- **FEDERAL FAIR HOUSING ACT ("FHA")** Title VIII of the Civil Rights Act; 42 U.S.C. §§ 3601-3619; Prohibits discrimination in sales, rental or financing of residential housing against persons in protected classes.
- **CALIFORNIA FAIR EMPLOYMENT AND HOUSING ACT ("FEHA")** California Government Code ("GC") §§12900-12996,12955; 2 California Code of Regulations ("CCR") §§12005-12271; Prohibits discrimination in sales, rental or financing of housing opportunity against persons in protected classes by providers of housing accommodation and financial assistance services as related to housing.
- **CALIFORNIA UNRUH CIVIL RIGHTS ACT ("Unruh")** California Civil Code ("CC") §51; Prohibits business establishments from discriminating against, and requires full and equal accommodation, advantages, facilities, privileges, and services to persons in protected classes.
- **AMERICANS WITH DISABILITIES ACT ("ADA")** 42 U.S.C. §§12181-12189; Title III of the ADA prohibits discrimination based on disability in public accommodations.
- **OTHER FAIR HOUSING LAWS:** Section 504 of Rehabilitation Act of 1973 29 U.S.C. §794; Ralph Civil Rights Act CC §51.7.; California Disabled Persons Act; CC §§54-55.32; any local city or county fair housing ordinances, as applicable.

3. WHO IS REQUIRED TO COMPLY WITH FAIR HOUSING LAWS? Below is a non-exclusive list of providers of housing accommodations or financial assistance services, as related to housing, who are most likely to be encountered in a housing transaction and who must comply with fair housing laws:

- Sellers
- Real Estate Licensees
- Insurance Companies
- Landlords
- Real Estate Brokerage Firms
- Homeowners Associations (HOAs)
- Sublessors
- Property Managers
- Banks and Mortgage Lenders

4. EXAMPLES OF CONDUCT THAT MAY NOT BE MOTIVATED BY DISCRIMINATORY INTENT BUT COULD HAVE A DISCRIMINATORY EFFECT: Refusing to rent: (i) an upper-level unit to an elderly tenant out of concern for the tenant's ability to navigate stairs; or (ii) a house with a pool to a person with young children out of concern for the children's safety.

5. EXAMPLES OF UNLAWFUL OR IMPROPER CONDUCT BASED ON A PROTECTED CLASS

OR CHARACTERISTIC:

- Refusing to negotiate for a sale, rental or financing or otherwise make a housing opportunity unavailable; failing to present offers due to a person's protected status;
- Refusing or failing to show, rent, sell or finance housing; “channeling” or “steering” a prospective buyer or tenant to or away from a particular area due to that person's protected status or because of the racial, religious or ethnic composition of the neighborhood;
- “Blockbusting” or causing “panic selling” by inducing a listing, sale or rental based on the grounds of loss of value of property, increase in crime, or decline in school quality due to the entry or prospective entry of people in protected categories into the neighborhood;
- Making any statement or advertisement that indicates any preference, limitation, or discrimination;
- Inquiring about protected characteristics (such as asking tenant applicants if they are married, or prospective purchasers if they have children or are planning to start a family);
- Using criminal history information before otherwise affirming eligibility, and without a legally sufficient justification;
- Failing to assess financial standards based on the portion of the income responsible by a tenant who receives government subsidies (such as basing an otherwise neutral rent to income ratio on the whole rent rather than just the part of rent that is the tenant's responsibility);
- Denying a home loan or homeowner's insurance;
- Offering inferior terms, conditions, privileges, facilities or services;
- Using different qualification criteria or procedures for sale or rental of housing such as income standards, application requirements, application fees, credit analyses, sale or rental approval procedures or other requirements;
- Harassing a person;
- Taking an adverse action based on protected characteristics;
- Refusing to permit a reasonable modification to the premises, as requested by a person with a disability (such as refusing to allow a wheel chair bound tenant to install, at their expense, a ramp over front or rear steps, or refusing to allow a physically disabled tenant from installing, at their own expense, grab bars in a shower or bathtub);
- Refusing to make reasonable accommodation in policies, rules, practices, or services for a person with a disability (such as the following, if an actual or prospective tenant with a disability has a service animal or support animal):
 - (i) Failing to allow that person to keep the service animal or emotional support animal in rental property,
 - (ii) Charging that person higher rent or increased security deposit, or
 - (iii) Failing to show rental or sale property to that person who is accompanied by the service animal or support animal; and
- Retaliating for asserting rights under fair housing laws.

6. EXAMPLES OF POSITIVE PRACTICES:

- Real estate licensees working with buyers or tenants should apply the same objective property selection criteria, such as location/neighborhood, property features, and price range and other considerations, to all prospects.
- Real estate licensees should provide complete and objective information to all clients based on the client's selection criteria.
- Real estate licensees should provide the same professional courtesy in responding to inquiries, sharing of information and offers of assistance to all clients and prospects.

- Housing providers should not make any statement or advertisement that directly or indirectly implies preference, limitation, or discrimination regarding any protected characteristic (such as “no children” or “English-speakers only”).
- Housing providers should use a selection process relying on objective information about a prospective buyer's offer or tenant's application and not seek any information that may disclose any protected characteristics (such as using a summary document to compare multiple offers on objective terms).

7. FAIR HOUSING RESOURCES: If you have questions about your obligations or rights under the Fair Housing laws, or you think you have been discriminated against, you may want to contact one or more of the sources listed below to discuss what you can do about it, and whether the resource is able to assist you.

- Federal: https://www.hud.gov/program_offices/fair_housing_equal_opp
- State: <https://www.dfeh.ca.gov/housing/>
- Local: local Fair Housing Council office (non-profit, free service)
- Any qualified California fair housing attorney, or if applicable, landlord-tenant attorney.

8. LIMITED EXCEPTIONS TO FAIR HOUSING REQUIREMENTS: No person should rely on any exception below without first seeking legal advice about whether the exception applies to their situation. Real estate licensees are not qualified to provide advice on the application of these exceptions:

- Legally compliant senior housing is exempt from FHA, FEHA and Unruh as related to age or familial status only.
- An owner of a single-family residence who resides at the property with one lodger may be exempt from FEHA for rental purposes, PROVIDED no real estate licensee is involved in the rental.
- An owner of a single-family residence may be exempt from FHA for sale or rental purposes, PROVIDED (i) no real estate licensee is involved in the sale or rental and (ii) no discriminatory advertising is used, and (iii) the owner owns no more than three single-family residences. Other restrictions apply.
- An owner of residential property with one to four units who resides at the property, may be exempt from FHA for rental purposes, PROVIDED no real estate licensee is involved in the rental.
- Both FHA and FEHA do not apply to roommate situations. See, Fair Housing Council v Roommate.com LLC, 666 F.3d 1216 (2019).
- Since both the 14th Amendment of the U.S. Constitution and the Civil Rights Act of 1866 prohibit discrimination based on race; the FHA and FEHA exemptions do not extend to discrimination based on race.

NOTICE OF RIGHT TO RECEIVE FOREIGN LANGUAGE TRANSLATION OF LEASE/RENTAL AGREEMENTS.

Pursuant to the California Civil Code, a landlord or property manager is required to provide Tenant with a foreign language translation copy of a lease or rental agreement if the agreement was primarily negotiated in Spanish, Chinese, Korea, Tagalog, or Vietnamese. If applicable, every term of the lease/ rental needs to be translated except for, among others, names, dollar amounts, and dates written as numerals, and words with no generally accepted non-English translation.

MEGAN'S LAW

Notice: Pursuant to Section 290.46 of the Penal Code, information about specified registered sex offenders is made available to the public via an Internet Web site maintained by the Department of Justice at www.meganslaw.ca.gov. Depending on an offender's criminal history, this information will include either the address at which the offender resides or the community of residence and ZIP Code in which he or she resides. (Neither Landlord nor Brokers, if any, are required to check this website. If Tenant wants further information, Tenant should obtain information directly from this website.)

ACKNOWLEDGEMENT:

Tenant and Agent have read, understand and acknowledge receipt of a copy of this Fair Housing & Discrimination Advisory and Megan's Law Disclosure.

X

Taylor A. Bathel

7.3 FLOOD HAZARD DISCLOSURE

INFORMATION ABOUT FLOOD HAZARDS:

- ☒ 1. The Property **is not** located in a special flood hazard area or an area of potential flooding.

OR

- ☐ 2. The Property **is** located in a special flood hazard area or an area of potential flooding.

Property is deemed to be in a special flood hazard area or area of potentially flooding if any of the following scenarios apply:

- The Owner has actual knowledge of that fact.
- The Owner has received written notice from any public agency stating that the Property is located in a special flood hazard area or an area of potential flooding.
- The Property is located in an area in which the owner's mortgage holder requires the owner to carry flood insurance.
- The Owner currently carries flood insurance.

The Tenant may obtain information about hazards, including flood hazards, that may affect the Property from the website of the Office of Emergency Services and their "My Hazards" Tool (<http://myhazards.caloes.ca.gov>).

The Owner's insurance does not cover the loss of the Tenant's personal possessions and it is recommended that the Tenant consider purchasing renter's insurance and flood insurance to insure his or her possessions from loss due to fire, flood, or other risk of loss.

The Owner is not required to provide additional information concerning the flood hazards to the Property and that the information provided pursuant to this section (California Government Code section 8589.45) is deemed to inform the tenant.

The foregoing terms and conditions are hereby agreed to, and the undersigned acknowledge receipt of a copy of this document.

7.4 MOLD, MILDEW, AND MOISTURE ADDENDUM

TENANT ACKNOWLEDGEMENT:

Tenant acknowledges that the Property is located in, a climate conducive to the growth of mold and mildew. Landlord/Agent reserves the right to terminate the tenancy and Tenant agrees to vacate the property in the event Landlord/Agent determines, in its sole judgment, that either there is mold or mildew present in the dwelling unit which may pose a safety or health hazard to Tenants or other persons, and/or Tenant's actions or inactions are causing a condition which is conducive to mold growth.

Except as may be noted at the time of Tenant's move-in inspection, Tenant agrees that the Property is being delivered free of known damp, wet building materials or mildew and mold contamination.

Tenant further acknowledges and agrees that Tenant is responsible to maintain the Property in a manner that inhibits mold growth. Tenant's agreement to do so is a material consideration in Landlord's agreement to rent the Property to Tenant. Accordingly, Tenant agrees to:

1. Maintain the Property free of dirt, debris and moisture that can harbor mold.
2. Clean any found mildew and/or mold with an appropriate cleaner designed to kill mold.
3. Clean and dry any visible moisture on windows, walls and other surfaces, including personal property, as quickly as possible.
4. Use reasonable care to close all windows and other openings on the Property to prevent water from entering the Property.
5. Use exhaust fans, if any, in the bathroom(s) and kitchen while using those facilities and notify Agent of any inoperative exhaust fans.
6. Immediately notify Agent of any water intrusion, including but not limited to, roof or plumbing leaks, drips or sweating pipes.
7. Immediately notify Agent of overflows from bathroom, kitchen or laundry facilities.
8. Immediately notify Agent of any significant mold growth found on any surfaces on the Property.
9. Allow Agent, with appropriate notice, to enter the Property and make inspections regarding mold and ventilation.
10. Release, indemnify, hold harmless and forever discharge Landlord and Agent and Landlord's and Agent's employees, agents, successors and assigns from any and all claims, liabilities or causes of action of any kind that Tenant, members of Tenant's household or Tenant's guests or invitees may have at any time against Landlord, Agent or Landlord's or Agent's agents resulting from the presence of mold due to Tenant's failure to comply with this Lease/Rental Mold and Ventilation Addendum.

If the Tenant fails to comply with the provision of the lease, Tenants can be held responsible for the Property damage and remediation that may result. Noncompliance includes, but is not limited,

Tenant's failure to notify Landlord of any mold, mildew, or moisture problems immediately in writing. Violations shall be deemed a material violation under the terms of the Lease and Landlord shall be entitled to exercise all rights and remedies it possesses against Tenants in law or in equity. Tenants shall be liable to Landlord for damages sustained to the leased Property. Tenants shall hold Landlord and Agent harmless for damage or injury to person or property as a result of Tenants failure to comply with the terms of this addendum.

By signing below, the undersigned Tenant(s) agree and acknowledge having read and understood this addendum.

X _____
Taylor A. Bathel

7.5 PROPOSITION 65 DISCLOSURE AND WARNING

PURPOSE:

Proposition 65 requires businesses to provide warnings to Californians about significant exposures to chemicals that cause cancer, birth defects or other reproductive harm. Proposition 65 also protects California's drinking water sources from being contaminated with chemicals known to cause cancer, birth defects or other reproductive harm (www.p65warnings.ca.gov/.)

POTENTIAL EXPOSURES:

You may be exposed to the following carcinogens and/or reproductive toxicants at the Property:

Asbestos. WARNING: Asbestos-containing materials, including some ceiling coatings on this property can, if damaged or disturbed, expose you to asbestos, which is known to the State of California to cause cancer. Talk to the Agent about how and when you could be exposed to this chemical in your Property. For additional information go to: www.P65Warnings.ca.gov/apartments.

Lead Plumbing. WARNING: Use of lead-containing plumbing materials on this property can expose you to lead, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to the Agent about how and when you could be exposed to this chemical in your Property. For additional information go to: www.P65Warnings.ca.gov/apartments.

Fireplaces or Unvented Gas Space Heaters. WARNING: Fireplaces or unvented gas space heaters on this property may expose you to carbon monoxide, which is known to the State of California to cause birth defects or other reproductive harm. Talk to the Agent about how and when you could be exposed to this chemical in your Property. For additional information go to: www.P65Warnings.ca.gov/apartments.

Lead Paint. WARNING: Paint chips and dust from lead-containing paint on this property can expose you to lead, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to the Agent about how and when you could be exposed to this chemical in your Property. For additional information go to: www.P65Warnings.ca.gov/apartments.

Designated Smoking Areas. WARNING: Breathing the air in this smoking area can expose you to chemicals including tobacco smoke and nicotine, which are known to the State of California to cause cancer and birth defects or other reproductive harm. Do not stay in this area longer than necessary. For more information go to: www.P65Warnings.ca.gov/smoking-areas.

Building Materials Containing Urea-Formaldehyde Resins. WARNING: Building materials containing urea-formaldehyde resins, such as insulation, pressed wood materials, finishes, or adhesives, on this property can expose you to formaldehyde, which is known to the State of California to cause cancer. Talk to the Agent about how and when you could be exposed to this chemical in your Property. For additional information go to: www.P65Warnings.ca.gov/apartments.

Enclosed Parking Facility. WARNING: Breathing the air in this parking garage can expose you to chemicals including carbon monoxide and gasoline or diesel engine exhaust, which are known to the State of California to cause cancer and birth defects or other reproductive harm. Do not stay in this area longer than necessary. For more information go to: www.P65Warnings.ca.gov/apartments.

Landscaping and Weed Control WARNING: Landscaping and weed control activities on this property can expose you to chemicals including glyphosate (also known as Round Up) which is known to the State of California to cause cancer. Talk to the Agent about how and when you could be exposed to these chemicals in your Property . For additional information go to: www.P65Warnings.ca.gov/apartments.

Imported Vinyl Miniblinds Manufactured prior to 1997. WARNING: Imported vinyl miniblinds manufactured prior to 1997 on this property can expose you to lead, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to the Agent about how and when you could be exposed to this chemical in your Property. For additional information go to: www.P65Warnings.ca.gov/apartments.

Pesticide – Resmethrin. WARNING: Pesticides used on this property can expose you to resmethrin, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to the Agent about how and when you could be exposed to this chemical in your Property. For additional information go to: www.P65Warnings.ca.gov/apartments.

Swimming Pool / Hot Tub / Jacuzzi / Spa. WARNING: The use and maintenance of a variety of recreational activities and facilities such as swimming pools and hot tubs chlorine and bromine are used in the disinfecting process can cause exposures to chloroform and bromoform which are chemicals known to the State of California to cause cancer.

Other:

Other:

TENANT ACKNOWLEDGEMENT:

By Signing below, the undersigned Tenant(s) agree and acknowledge having read and understood this addendum.

X _____
Taylor A. Bathel

7.6 RENT CAP AND JUST CAUSE ADDENDUM

AB 1482 COMPLIANCE:

☒ **NOTICE OF EXEMPTION FROM RENT CAP AND JUST CAUSE EVICTION LAW FOR**

SINGLE FAMILY RESIDENTIAL PROPERTY (INCLUDING CONDOMINIUMS AND UNITS IN PLANNED DEVELOPMENTS):

Agent hereby notifies Tenant that the Property is exempt from the rent cap provisions specified in Civil Code §1947.12 and the just cause eviction provisions specified in Civil Code §1946.2

The Property is not subject to the rent limits imposed by Section 1947.12 of the Civil Code and is not subject to the just cause requirements of Section 1946.2 of the Civil Code. This property meets the requirements of Sections 1947.12(d)(5) and 1946.2(e)(8) of the Civil Code and the Landlord is not any of the following: (1) a real estate investment trust, as defined by Section 856 of the Internal Revenue Code; (2) a corporation; or (3) a limited liability company in which at least one member is a corporation.

-OR-

☐ NOTICE OF RENT CAP AND JUST CAUSE EVICTION LAW

Agent hereby notifies Tenant that the Property is subject to the rent cap provisions specified in Civil Code §1947.12 and the just cause eviction provisions specified in Civil Code §1946.2

California law limits the amount your rent can be increased. See Section 1947.12 of the Civil Code for more information. California law also provides that after all of the tenants have continuously and lawfully occupied the property for 12 months or more or at least one of the tenants has continuously and lawfully occupied the property for 24 months or more, a landlord must provide a statement of cause in any notice to terminate a tenancy. See Section 1946.2 of the Civil Code for more information. This lease may be terminated if the owner, their spouse, domestic partner, children, grandchildren, parents or grandparents unilaterally decide to occupy the referenced real property.

By Signing below, the undersigned Tenant(s) agree and acknowledge having read and understood this addendum.

X _____
Taylor A. Bathel

By signing below, you acknowledge and agree to the terms in Section 7.

X _____
Lessee Taylor A. Bathel

8. PURE - RBP 2.0 ADDENDUM

8.1 RBP 2.0 LEASE ADDENDUM

Resident Benefits Package 2.0:

This Tenant Benefits Package Addendum ("RBP Addendum") is effective as of the commencement date of the Lease and agreed upon between Tenant and the Landlord. The RBP Addendum provides the terms and conditions of the PURE Tenant Benefits Package ("RBP") that delivers savings and convenient, professional services that make taking complete care of your home simple and affordable for \$49.99/month ("Tenant Benefits Package 2.0"), payable with Rent. The RBP includes all services listed below; however no discounts to the RBP Fee will be given if any element(s) of the RBP is discontinued, and/or property-specific limitations, availability of services, or any other reasons, unless otherwise specified below.

Tenant and Landlord mutually agree the RBP is defined based on the listed services below and variations may exist due to property specifications and elections noted in this addendum. Tenant acknowledges and agrees that (1) all services listed below are part of the RBP, (2) are made with Tenant's consent and shall be effective for the Term of the Lease, and (3) shall terminate upon termination of the Lease, or upon the renewal of the Lease without the inclusion of RBP or at Tenant's request made in writing.

- **Tenant Rewards:** The RBP shall include access to a Tenant rewards program ("Rewards") designed for use by Tenant. Rewards are solely accessible online and are activated, and used, at Tenant's sole discretion through the use of a mobile application provided by the Rewards provider. Rewards will provide Tenant with available rewards as a preferred customer of the landlord. The Rewards shall be subject to Tenant's acceptance of the Rewards provider's terms of use. Tenant acknowledges that the Rewards online platform may be inaccessible due to, but not limited to, scheduled outages, force majeure, and internet failures, among other reasons.
- **Credit Building:** Tenant agrees to, and Landlord shall provide, credit bureau reporting of payment history of Rent payments, excluding payment of Additional Rent or any other services paid by Tenant under the Lease, through a third-party service provider. For any disputes, and/or corrections, Tenant acknowledges and agrees to seek resolution first with the third-party credit data furnisher, and in the absence of resolution, from the Landlord.
- **\$1M Identity Protection:** Tenant is automatically enrolled in Identity Protection and agrees to Aura's Identity Guard Terms of Service and Privacy Policy with respect to the identity theft protection service provided as part of the RBP, which can be found at www.identityguard.com.
- **Late Fee Forgiveness:** One-time late fee forgiveness per calendar year. "Late Fee" is defined as the first applicable charge when rent balance is considered delinquent. The use of this waiver will not be automatic and must be requested in writing by the Tenant. Written request to property management team must be received within 30 days of rental payment due date.
- **On Demand Pest Control:** Tenant is invited to enroll in the "Pest Assurance Plus" an On Demand Pest Control service, pursuant to the terms and conditions provided under pest.Tenantforms.com.

HVAC Filter Delivery: The RBP shall include the provision and delivery of HVAC filters for Tenant's home approximately every 90 days. Tenant shall be solely responsible for the proper installation of the filter that is provided within two (2) days of receipt. If at any time Tenant is unable to properly or timely install a filter, Tenant shall immediately notify the Landlord in writing. Due to potential damage caused to the HVAC system from failure to properly and timely replace filters, Tenant's failure to properly and timely replace filters shall be considered a breach of the Lease. Tenant's acknowledges and agrees the delayed receipt of HVAC filters, or inaccuracy of shipment, shall not cause reduction or modification to the RBP Fee.

Liability Insurance Requirements & Program

The Agreement requires Tenant to obtain liability coverage of at least \$100,000 in property damage and liability coverage from an A-rated carrier and to maintain coverage throughout the entire term of the Lease.

To satisfy the insurance requirement, Tenant may either (1) be automatically enrolled into the Agent's Master Policy that satisfies the coverage requirements as part of the RBP; or (2) obtain alternative liability coverage from an insurer of Tenant's choice that meets the requirements set by the Landlord herein. The option Tenant chooses shall not affect whether Tenant's lease application is approved or the terms of Tenant's Lease. Tenant's election shall be determined by the actions of Tenant as provided below:

Option 1: Offered under the PURE Master Policy (Automatic Enrollment) – Tenant has elected to be automatically enrolled with the benefits offered under the RBP shown below. Coverages* are provided in partnership with Your Renters Insurance Group, "YRIG."

- \$20,000 replacement protection to loss of your personal property (subject to a \$250 deductible)
- \$100,000 legal liability protection
- \$100,000 bodily injury protection; per incident

- \$150 per day, additional living expense
- \$10,000 Pet liability coverage*

*additional Pet coverages may be required based on “FidoScore” Pet Score obtained from PetScreening at additional cost

As required in the signed Lease agreement, coverage will begin on the effective date of Tenant’s lease and continue throughout the term of the Lease unless canceled in writing wherein Option 2, below, and its verification requirements take effect. Please refer to the evidence of insurance that is supplied by Agent for additional coverage details. The monthly fee for the elected benefits is included in the RBP price.

Tenants can visit <https://eob.yrig.com/760010-1aPUREExplanation2.0.pdf> for policy coverages and claim submittals.

1. Should a three day notice to pay or quit be issued to the Tenant and the Tenant fails to pay entire past due balance, and fails to quit, the RBP coverage will cease immediately.
2. Should a three day notice to pay or quit be issued to the Tenant and the Tenant duly quits the premises upon receipt of the notice, the RBP coverage will cease immediately.
3. Should the Landlord terminate management with PURE PM for any reason, provision of RBP coverage will immediately cease and the Tenant must submit proof having secured third party coverage with the applicable verification provided by YRIG.

Option 2: Tenant Provides Policy (Policy Verification Required) - Tenant has elected to find, purchase, and maintain Tenant’s policy that satisfies the landlord’s coverage requirements set forth in the Lease

Agreement. Tenant must provide evidence of the required insurance coverage by the Lease commencement date. The RBP Fee will be adjusted per the selection below.

Should the Tenant choose to provide third party coverage, Tenant must visit the following link and adhere to the provided instructions, submitting proof of the necessary insurance coverage to the appropriate landlord: <https://app.smartsheet.com/b/form/2ad60e510d014da6b3c3ea86e476e9b2>. **This proof of coverage must be provided at least 72 hours prior to the Move-In date. Failure to comply with proof of coverage will result in automatic enrollment in Option 1.**

If Tenant chooses to obtain their own insurance policy, Tenant’s policy must meet the following minimum criteria:

- The policy is purchased from an A-rated carrier.
- Policy meets or exceeds the required \$100,000 in property damage and personal liability.
- \$20,000 replacement protection to loss of your personal property
- \$100,000 legal liability protection
- \$100,000 bodily injury protection; per incident
- \$150 per day, additional living expense
- \$10,000 Pet liability coverage*
- & PURE Property Management is listed as an “Interested Party”

It is Tenant's sole responsibility to timely pay premiums directly to Tenant’s insurance provider to avoid cancellation of coverage. If the policy is canceled or lapses at any time during the term of the Lease, Tenant shall be subject to an administrative fee of \$25 and agrees to be subsequently enrolled into the policy referenced in Option 1 above.

Additional Terms and Conditions

RBP Vendors: landlord, and/or PURE Property Management, may have business relationships or affiliations with vendors and suppliers of RBP services or products provided herein and may receive financial or other benefits from that relationship or affiliation.

Data Privacy Consent: Tenant hereby consents to the collection, use, and transfer, in electronic or another form, of Tenant’s personally identifiable information, including sensitive information, to include, but not limited to, Tenant’s name, email address, telephone number (home, work, and mobile numbers) and date of birth, (collectively, the “Tenant Data”) by the landlord, and its service providers, subcontractors, and agents (individually or collectively, the “RBP Provider(s)”) for the exclusive purpose of implementing, managing, and performing the RBP. Tenant understands that Tenant Data may be transferred to any RBP Provider implementing, managing, and performing the RBP, now or in the future. Tenant authorizes the RBP Providers to receive, possess, use, retain and transfer Tenant Data, in electronic or other form, for the exclusive purpose of implementing, managing, and performing the RBP. Tenant understands that Tenant Data will be held by the RBP Providers only as long as is necessary or appropriate for implementing, managing, and performing the RBP. Further, Tenant understands that Tenant is providing the consents herein on a purely voluntary basis. landlord represents and warrants that it shall comply with applicable data protection laws, including implementing appropriate technical and organizational measures that meet the requirements of applicable data protection laws. You are entitled to withdraw your consent from marketing communications or any future distribution or sharing of your personal data. To exercise this right, please forward your request through our Data Request Form (<https://purepm.co/dsar>), submit a request via, privacy@purepm.co, or call 866-978-7376. Further information can be found at: <https://www.purepm.co/privacy-policy>.

Any clauses or terms referenced in this Agreement may be modified by landlord after first providing thirty (30) days’ notice in writing to Tenant.

Package Selection and Acknowledgement

Upon the signature of the Parties below, the above-mentioned RBP Addendum shall be considered as part of the Lease and legally binding

on all Parties with full participation at \$49.99 per month unless:

- ☐ Tenant Provides Proof of Third Party Liability Insurance Policy* Coverage - \$10 Credit / per month
- ☒ Tenant Declines Pest Abatement* Treatments - \$9 Credit / per month
- ☒ Property Restriction Requires No HVAC Filters - \$5 Credit / per month

*Tenant has elected to secure this service from a third party and agrees to provide proof of policy, contract or rendering of services as required per the terms of the Lease Agreement

By signing below, you acknowledge and agree to the terms in Section 8.

X

Lessee

Taylor A. Bathei

9. TENANT HANDBOOK

9.1 INTRODUCTION

Welcome to your new home at

3056 Nile Street
San Diego, CA 92104-4810

. This Tenant Handbook provides important information about your new home and answers frequently asked questions. As you get settled into your new home, please be sure to provide us with your phone number as soon as possible.

Please let us know if your phone number and/or email address changes at any time.. You can update your contact information via the Tenant Portal. Also, please make certain to have all the utilities put in your name (unless included in the rent payment and defined in the Lease Agreement) 3 days before the Commencement Date.

The following information is designed to respond to frequently asked questions, minimize confusion related to caring for the property and to instruct you on interacting with PURE Property Management Company.

- Tenant Portal Information
- Maintenance Guidelines
- Lost Keys/Codes
- Move-In Inspection Procedures
- Smoke Detector Operation Instructions
- Utility & Service Directory
- HOA Information (as applicable)
- Septic System Information (as applicable)

Please review this Tenant Handbook and keep it handy for future reference.

Our office hours are Monday to Friday 9:00 a.m. to 5:00 p.m. We are closed for major holidays. Please remember to schedule an appointment should you need to meet with your property manager.

Rent is due on the 1st day of each month and may be mailed, paid online or delivered to our office (address above). We do not accept rent payments at any other locations and we do not have a drop box for after hours delivery, unless mandated by local or state law.

- Make all checks payable to “ PURE Property Management”.
- Rent may be paid by personal check, money order or cashier check. NO CASH IS ACCEPTED AT ANY TIME.
- Late charges are assessed according to your Lease. Please review your Lease and understand the charges and costs associated with late payment.
- Please remember to put your name and the address of the rental property on your check/money order each month, and sign if necessary, to ensure that your account is credited with payment.
- The best way for you to pay rent is to use the Tenant Portal where you can pay by echeck each month or set up a recurring payment.

9.2 TENANT PORTAL INFORMATION

Property Management Company provides a secure Tenant Portal that allows you access to your account.. Visit our website at <https://sandiego.purepm.co/> and click Current Tenants. On this page you will find a link to the Tenant Portal. Once you sign up, you can make rent payments directly from your bank to ours and monitor payments. You can also communicate directly with our team through the portal.

All Tenants are encouraged to obtain login information for their Tenant Portal access as soon as possible.

9.3 MAINTENANCE GUIDELINES

At the time you take possession of the property, it should be clean and well-maintained with all appliances and mechanical systems functioning correctly. Any concerning pre-existing conditions and/or damages should be noted clearly on your Statement of Condition Form. If any conditions or damages were not readily visible at the initial inspection, they should be reported immediately upon discovery.

The following outlines PURE Property Management's policy regarding Tenant cleaning & maintenance responsibilities during the lease. If followed, it will help ensure that your security deposit is returned at move out. This guide is intended to outline your general maintenance responsibility and does not address every possible cleaning or maintenance issue.

- If a maintenance issue should arise, submit your requests in writing via your assigned maintenance Portal to ensure a clear record of your request.
- When making a request, be specific about the problem and include your name, address, and the best number(s) to reach you.
- If a PURE Property Management Company technician is not available, Tenants must make themselves available and schedule a time to let outside vendors or repair people into the property. We will not provide keys/code to outside vendors for occupied properties. If you input a maintenance request that our technician(s) can complete, unless otherwise noted, you are giving permission for our technician(s) to enter your property to complete the requested repair.
- Tenants are responsible for securing all animals for all vendor visits.
- Failure to secure animals, may subject you to a Denial of Access Charge per the table below.
- Tenants may be charged for Tenant caused vendor visits (e.g., an item stuck in garbage disposal, toilet clog, furnace filter not changed, etc.).

9.4 EMERGENCY MAINTENANCE

- **In the event of a fire, flood, gas leak, or other major emergency, call 9-1-1 immediately.** After reporting the emergency to 9-1-1 and ensuring all persons are safe, please contact your leasing office.
- All REGULAR maintenance issues should be directed to our office via your assigned maintenance Portal or by calling the office during normal business hours.
- If you have an urgent maintenance issue and it is before or after regular business hours, call the Emergency Repair Line at 855.420.7873.
- Emergencies are fire, flood or any dangerous or hazardous situation. HVAC issues are deemed emergencies if the OUTSIDE temperature is above 85 degrees Fahrenheit or below 55 degrees Fahrenheit.

- All other items such as annoying sounds, questions about installing fences or satellite dishes or other general items are not emergencies.
- Tenant will be responsible for service charges if they inaccurately report items as emergencies.

9.5 LOCKED OUT OR LOST KEYS/CODES

- Tenants are not permitted to change the locks on their property. If you feel a need to change the locks you should contact your property manager for assistance.
- If Smart locks are used for properties under management, Tenants will only be provided keys for storage rooms or mail boxes, as applicable. If your access code for the entry door is not working, please contact your Property Manager. If after hours, call the after hours Emergency Repair Line at 855.420.7873.
- Tenants are responsible to change the batteries in the smart locks on a regular basis.

9.6 SECURITY SYSTEM

If the Property is equipped with an “ADT”-style security system, the Tenant may initiate the system’s services at the Tenant's expense. Landlord does not warrant or guarantee the security provided by the system, Tenant acknowledges that it should not rely on the security system for Tenant’s safety, security, or theft prevention.

9.7 MOVE-IN EVALUATION PROCEDURE

- Your Property Manager provided you with the Statement of Condition form at lease signing. Please complete the form as completely as possible and return it to the office within 3 days of move-in, pictures are always helpful.
- At move out, you may be responsible for damage to the property that was not identified on the Statement of Condition form.

9.8 SMOKE DETECTOR OPERATION INSTRUCTIONS

- The Tenant is responsible to regularly test the smoke detector(s) (use the push-to-test button regularly to test each smoke detector) and to immediately notify the property manager, in writing, of any problems with the smoke detector(s). Repair or replacement of the smoke detector(s) shall commence within 7 days of receipt of written notice..
- The Tenant is responsible to replace the batteries in all smoke detector(s) during the lease term. To change the battery, slide the battery door open, remove the old battery, install a new 9-volt battery, close the battery door, and test the smoke detector by using the push-to-test button.
- Clean the smoke detector cover once a month with a soft brush or wand attachment from a vacuum cleaner to remove dust, dirt, and debris which can build up on the housing and reduce functionality. You may also use a damp cloth to clean the smoke detector cover.

9.9 CARE & USE INFORMATION

PLEASE REPORT UNSAFE OR HAZARDOUS SITUATIONS IMMEDIATELY.

HVAC MAINTENANCE

Tenant is responsible for cleaning or replacing the HVAC filter on a quarterly basis using the filters provided by Landlord's vendor. Problems caused by failure to clean/replace the filter will be the Tenant's responsibility.

To care for your HVAC, please do the following:

- Dust all vents regularly. A small broom brushed across the vent openings will clear away any dust and help the unit to operate efficiently.
- Report any unusual noises or smells coming from the HVAC unit and any moisture in or around the HVAC closet immediately.
- It is imperative that Air Conditioning units that have filters be changed on a regular basis. We recommend that the filter(s) be changed monthly. Tenant will be held liable for any damages that are a result of the air filter(s) not being maintained during the tenancy. Filter(s) may be located inside the air handler or inside the return air vent. If you are unsure of your air conditioning filter's size or location, inquire with your property manager.

POWER OUTAGES

If the power goes out in your unit or house, first check to see if the whole area is without power. If power is out in the area, chances are the utilities company already knows about it. However, you can try calling your utility company to report the problem.

NAIL HOLES AND HANGING DECORATIVE ITEMS

Only use standard picture nails to hang decorative items and pictures. NEVER use large nails, screws, anchors or adhesives as these cause excessive damage and are not considered normal wear and tear. Two to three standard picture nails in a wall are considered normal wear and tear. Anything more could be considered excessive and damages could be assessed at move out. Please consult your Property Manager with any questions about the number of nails that can be used on any wall. NEVER Spackle standard picture nail holes.

DRAINS, FAUCETS AND DISHWASHERS

Avoid food, hair, excess soap and other materials from going down the drains.

Clogged drains caused by hair, grease, soap and other materials are the Tenant's responsibility.

- Toilet flush handles, flappers, and chains are a Tenant maintenance responsibility unless they fail within the first 30 days of the lease.
- Be careful to ensure that toys, clothes, towels, hard objects are not flushed in the toilet as they can clog the toilet. If the toilet needs to be replaced because of clogging, the cost to repair or replace the toilet is a Tenant responsibility.
- Leaky faucets and/or plumbing pipes must be reported immediately. Leaks are considered normal wear and tear. It is the Owner's responsibility to maintain faucets and plumbing pipes unless leaks and failures are caused by Tenant misuse. The Tenant will be held liable for damages caused by failing to report any leaks. .
- Report any water coming from under the dishwasher or around the door immediately.
- Whenever you empty the dishwasher, look for papers, glass or debris that may collect at the bottom of the dishwasher near the filter. Remove any debris immediately as it can cause damage to the internal components.

SEPTIC TANKS

If the Property has a septic system:

- Only three items are safe to flush down any of the toilets at the Property: 1) human waste; 2) toilet paper; and 3) septic system treatments (enzymes).
- **The following items must never be flushed down any toilet or disposed of down any drain line at the Property** as they can kill the helpful bacteria in the septic tank, corrode drain line pipes and can clog the drain lines resulting in failure of the entire septic tank system: **paper towels, grease, coffee grounds, sand, pet and human hair, tampons, sanitary napkins, dental floss, food, condoms, toys, bottle caps, paint, corrosive chemicals, any kind of liquid or tablet cleaning chemical that is stored in the toilet tank and any other item not specifically set forth in paragraph 1 of this section.**

Tenant agrees to fully comply with this section. Tenant will be held responsible for all damages to the septic tank system due to the Tenant, their invitees, guests, agents or licensees intentional or unintentional failure to comply with this section.

X

Taylor A. Bathel

9.10 GARBAGE DISPOSALS

Be sure to always run water while the disposal is operating to avoid damage to the unit. Let the water run long enough to grind all the material in the disposal and for 10-15 seconds after turning off the disposal. Learn to recognize the sound the machine makes when completely free of garbage.

Disposals are designed to grind up organic items only. Exceptions include: banana peels, artichoke leaves, celery stalks, broccoli, flower stems, coffee grounds, eggshells, bones, or any item that is particularly tough. Never put paper, plastic, glass, aluminum foil or grease in the disposal.

If the disposal is not operating, you may check the power switch (usually under the sink), try the reset button (somewhere on the machine), and remove all contents from inside the disposal. If you are not comfortable checking your disposal, then schedule a maintenance call through your Tenant Portal. Problems with the garbage disposal may be the Tenant's responsibility if caused by abuse or failure to comply with the above recommendations. Report any leaks coming from the garbage disposal immediately.

9.11 REFRIGERATOR COILS / DRIP PANS

Keep coils on refrigerators (especially sub-zeros) free of dust. Coils need free air flowing around them to operate efficiently. Failure to keep coils clean may cause the appliance motor to burn out. The replacement of a burned-out motor due to dirty coils may be the Tenant's responsibility. Some refrigerators have drip pans under them. If not kept clean, the pans can start to develop a strong odor. Please take the time to get acquainted with the appliances in your unit.

If your refrigerator dispenses water or ice, the Tenant is responsible for replacing the water filter every three months during their occupancy.

9.12 FIREPLACES

☐ The property contains an inoperable and/or nonfunctional fireplace, **The fireplace should not be used under any circumstances.**

☐ The property contains a “fire appliance” fireplace, which may be operated by Tenant. Tenant assumes all responsibility for the operation of the fire appliance. No materials should ever be added to fire appliance. Any service, maintenance, or repair of the fire appliance must be done with prior written authorization of the Landlord. No external materials may be burned in the fire appliance at any time, including wood, paper, food, or waste.

☐ The property contains a wood- or pellet-burning fireplace. The fireplace may be operated by Tenant. Tenant expressly assumes the risk of any injury or damage to persons or property as a result of operating the fireplace. Tenant shall not burn any waste, food, hazardous materials, or other dangerous items in the fireplace. Tenant must only burn non-toxic, legal firewood and/or nontoxic, legal pellet fuel. Owner warrants that the fireplace has been professionally cleaned (“Clean”) prior to Tenant’s move-in. If Tenant uses the fireplace at all during the tenancy, Tenant shall have the fireplace and chimney professionally cleaned by a licensed, bonded chimney sweep once per year and prior to the end of this Agreement, such that the fireplace and chimney are returned to a Clean condition at the termination of the Agreement, or the reasonable cost of such service(s) shall be deducted from Tenant’s security deposit in accordance with applicable laws.

Any breach of these fireplace and fire appliance rules and requirements shall be deemed a material breach of this Agreement.

9.13 HOMEOWNER'S ASSOCIATION

Tenant is hereby notified and acknowledges that the Property may be located within, a part of, and subject to a Homeowners’ Association (“HOA.”) The HOA has and may, from time to time, implement covenants, conditions and restrictions, bylaws, rules and regulations and decisions (“HOA Rules.”)

If Property is within and/or subject to an HOA, Tenant acknowledges that Landlord has provided Tenant with the current version of all HOA rules in effect at the Property. Landlord will promptly deliver any additional and/or modified rules to Tenant if any additional and/or modified rules become effective at the Property.

Tenant agrees to comply with all HOA Rules. Tenant shall reimburse Landlord for any fines or charges imposed by HOA or other authorities, due to any violation by Tenant, their guests or licensees of Tenant of any HOA Rules. Landlord shall have the right to deduct any fines or charges for Tenant violation of HOA Rules from the security deposit. To the extent the HOA imposes a fee to access certain Property features or areas (e.g.– Pool, Clubhouse, Recreation Activities), Tenant is required to pay the HOA fee. Unless otherwise excepted by this Agreement, Tenant is solely responsible for payment and satisfaction of HOA requirements and fees as of the Commencement Date.

X _____
Taylor A. Bathel

9.14 POOL AND SPA

If Property has a pool or spa/hot tub, the Landlord will maintain it. Tenant hereby acknowledges that Landlord has posted or provided Tenant rules pertaining to pool and/or spa/hot tub use and Tenant

will abide by such rules. Any failure to abide by pool and/or spa/hot tub rules shall be deemed a material breach of this Agreement.

If Property has a private pool and/or spa/hot tub, Landlord shall be responsible for normal repairs and maintenance items that are qualified as scheduled maintenance or "normal wear and tear." Tenant shall be responsible for the cost of any pool and/or spa/hot tub repairs required due to tenant's negligent use or abuse of the pool and/or spa/hot tub. Tenant agrees to keep the pool and/or spa filled with water at all times, and to run the filtration/circulation system daily. At the time the Tenant vacates the unit, the pool and/or spa is to be left in the same condition as when tenant took occupancy, normal wear and tear excepted. Tenant is fully responsible and liable for the safety of all persons and the possessions of those individuals using the pool and/or spa/hot tub.

Tenant agrees to abide by the following with regard to the use and maintenance of the swimming pool:

- The pool maintenance service employed by and paid for by Landlord will be responsible for the regular maintenance of the pool.
- Tenant shall not interfere in any way with the functions of any equipment related to the maintenance and upkeep of the pool (filtering system, pool sweep, etc);
- Tenant shall not block or prevent easy access to the pool service representative for regular cleaning and maintenance of the pool;
- Tenant is responsible for any utilities (water, electric, etc) necessary for the proper function and maintenance of the pool.
- Repairs to the pool or pool equipment due to wear or damage, other than that caused by negligence, carelessness or abuse on the part of tenant, will be paid by Landlord;
- Tenant expressly assumes all risks, responsibility and liability for the use of swimming pool and/or spa/hot tub, either to themselves or to any other person, and agrees to hold Landlord and Agent harmless and to indemnify Landlord and Agent for any injury or loss to any person using the pool during Tenant's occupancy of the property.

If the Property has a spa/hot tub, the spa/hot tub and all peripheral systems and structures are delivered "as is;" continued functionality or use is not guaranteed. Tenant shall absorb costs associated with those repairs and maintenance items that are qualified as scheduled maintenance or "normal wear and tear." Tenant shall be responsible for the cost of any spa/hot tub repairs required due to tenant's negligent use or abuse of the spa/hot tub. Tenant agrees to keep the spa/hot tub filled with water at all times, and to run the filtration/circulation system daily. At the time Tenant vacates the unit, the spa/hot tub is to be left in the same condition as when the tenant took occupancy, normal wear and tear excepted.

9.15 BARBECUES, SMOKERS, AND FIRE PITS

Barbecues, smokers (electronic, wood-burning, or pellet burning), and fire pits (including but not limited to gas fire pits, chimineas, or any other fire-burning device) are permitted on the Property unless otherwise posted or prohibited by law or by HOA rules. Tenant is solely responsible for any injury or damage resulting from the use of any barbecue, smoker, or fire pit on the Property. Tenant shall not operate any barbecue, smoker, or fire pit within ten (10) feet of any structure on the Property and shall not operate any barbecue, smoker, or fire pit beneath any awning, pergola, or other structure. If no location on premises meets the above criteria, then Tenant shall not be permitted to operate any barbecue, smoker, or fire pit on the Property.

9.16 OVEN RACKS AND PANS

Stove burner drip pans are a Tenant responsibility to maintain. The drip pans should be new or in excellent condition at the beginning of your lease and should be in the same condition at the end of your lease. If drip pans are in poor condition at move out, the replacement cost will be held from your security deposit.

Flat surface stoves should be cleaned with only approved cleaning agents. Tenant will be held liable for any damage to the stove surface caused by abrasive cleaners and/or abuse.

The grease filter, located in the vent hood or built microwave, is a Tenant responsibility to maintain.

9.17 PLUMBING FIXTURES

Never use abrasives on brass or gold fixtures. It is best to wipe fixtures clean after each use. If brass needs to be polished, please use a product specifically designed for use on brass. Many homes and apartments have low-flow toilets. We strongly recommend that you keep a plunger nearby. Low-flow toilets tend to clog or back up if too much paper or material is flushed. Tenants must be prepared to plunge the toilet to clear clogs and avoid damage from over-flows.

9.18 WATER DAMAGE

Tenants must take care to avoid water damage caused by allowing water to sit on counters and floors. Care must be taken to ensure that shower curtains are inside the tub, and that shower doors are completely closed when taking a shower. Water on tile floors can seep through the grout and cause dry rot on the floorboards below. Water can also seep around the edges of linoleum and damage the flooring below. We recommend putting a mat, towel or rug on the floor to step on when exiting the tub or shower. Water can easily be splashed into the space behind the faucet in the kitchen or bath and damage the counter surface. Please be sure to keep these areas dry to prevent damage.

9.19 SLIDING GLASS DOORS, SCREEN DOORS AND SHOWER TRACKS

It is imperative that dirt and debris regularly be cleaned out of sliding door tracks. Rolling over dirt, leaves and pine needles that frequently accumulate in the tracks can damage the wheels on sliding doors, especially the heavy glass sliders. Please make it part of your cleaning routine to clear the tracks. Please do not use oil or WD40 to lubricate slider doors or screens. They only attract dirt and gum up the wheel mechanisms. In order to slow the growth of mold in the tracks and at the bottom of shower doors, keep the tracks clean. Use an old toothbrush and do a regular monthly cleaning, it's much easier than doing one major cleaning at move-out time!

9.20 MOLD

Bleach is the best product for removing mold that forms around the edges of showers, tubs, on tile walls, around metal windows, and anywhere there is moisture. The easiest way to remove mold is to cut paper towels in half and fold them into one-inch strips. Dip each strip into the bleach bottle and hold your finger against it as you draw it out. Lay the bleach-soaked strips directly on the mold and leave them there for several hours. It works like magic. Remember to use rubber gloves, and air out affected rooms.

9.21 HOUSE PLANTS

Be sure drip pans are kept under all plants. Water run-off will stain or damage most surfaces.

9.22 KITCHEN COUNTERS

To avoid costly damage from nicks and cuts in counter tops, please use a cutting board at all times. Avoid allowing hot pots and pans to come into contact with counters. Tenants will be responsible for any damages to kitchen counters during move out.

9.23 CERAMIC TILE - MOLDED TUB AND SHOWER WALLS

To clean ceramic tiles and molded fixtures tiles follow these instructions:

- Dilute 1 part white vinegar in 5 parts water
- Never use scrubbing cleansers like Comet or AJAX on molded fixtures, as these products will permanently scratch the surfaces
- Use a soft sponge and apply the solution to the molded areas

9.24 MINI BLINDS

When cleaning mini blinds, don't soak them - the finish may bubble and peel. Spray them with a mild soap & water solution and wipe them. You can buy a spray cleaner that is inexpensive and easy to use, making cleaning a breeze. Weekly dusting or wiping can save a lot of work later.

9.25 CARPETED AREAS

Excessive wear and tear will happen if carpets are not cleaned properly on a regular basis. We recommend the following as a guide to caring for your carpets. You can reduce soil buildup in carpeting by:

- Remove shoes when entering the home.
- Vacuum carpets on a weekly basis paying special attention to "high traffic" areas, as ground in sand and dirt will damage carpet fibers.
- We recommend that inexpensive throw rugs be used in "high traffic" areas to reduce expensive damage to carpets.
- Clean up spills as fast as you can. Blot or scrape up as much of the spill as possible, blotting with a clean dry towel from the outside toward the center. If you use a stain remover, test it first on an inconspicuous area of the carpet to make sure it does not damage the carpet.
- There are many tricks to removing set-in stains, gum, candle, wax, etc. If you have any questions consult a professional or contact our office for suggestions.
- It is recommended that carpets be professionally cleaned as needed or at least once per year. If you rent or use your own carpet cleaner, make sure to follow the manufacturer's instructions so that damage to the carpet does not occur. Using excess soap or water can damage carpets and the underlayment padding.

9.26 HARD FLOORING

WOOD DECKS / PORCHES

If you have planters or pots, please put raised trays under them so that they are off the deck a few inches. This will allow air to flow beneath the pot, and to prevent water run-off from rotting the deck.

HARDWOOD FLOORS

Never use a mop or oil for cleaning hardwood floors. Use a soft cloth to avoid scratching the surface. It is best to sweep and dust regularly to avoid the build-up of dirt. We recommend cleaning the hardwood floors in your home with a small amount of vinegar in water. Periodically clean floors with Murphy's oil following the directions on the label. We encourage the use of throw rugs in front of the sink and the stove to protect these areas from water and grease.

MARBLE AND GRANITE

Marble is a porous material. Be careful that water run-off from plants is not left standing on the surface since it will permanently stain the marble. Never use any acidic or abrasive cleaning products including vinegar. It is best to use warm water and a sponge with a small amount of dishwashing liquid such as Dawn or Joy.

9.27 SATELLITE DISHES

If you would like to obtain a dish for your TV or internet use, you will need to get prior written approval from PURE Property Management. NEVER mount dishes to the roof of the home. Any dish must be mounted on a pole in the ground away from the underground lines. Typically, HOA's require that dishes are not visible from the street.

9.28 POTENTIAL TENANT CHARGES

Charge	Charge Amount	Frequency	Description
Lease Renewal Fee	\$150	Per Occurrence	administrative cost in negotiating, preparing and executing lease renewal
Early Lease Termination Fee	Actual Costs	Per Occurrence	Costs include rent until re-rented, utilities during vacancy, marketing of unit, and administrative costs.
Re-key Property	\$75 plus actual cost	Per Occurrence	Administrative costs in arranging for locksmith dispatch, service, delivery of keys to all appropriate parties.
Unauthorized Lock Change Fee	75 plus actual cost	Per Occurrence	Administrative costs in arranging for locksmith dispatch, service, delivery of keys to all appropriate parties when Tenant changes locks without authorization.
Online Payment Processing Fee	As established by vendor	Per Occurrence	Third-party charge, assessed by the software vendor, for the convenience of using ACH or credit payment systems. This is not a payment to PURE or Landlord.
Late Fee	\$150	Per Occurrence	Administrative costs to identify and pursue collection of delinquent rents.
Non-Sufficient Funds Fee	\$25 for first occurrence, \$35 for subsequent	Per occurrence	Fees assessed by bank for transacting non-negotiable check or ACH
HOA Violation Fee	\$75 plus any HOA-	Per occurrence	Administrative costs for fielding and interacting between HOA and tenant

HOA Owner Representation Fee	instituted fines \$75 per hour plus any HOA-instituted fines	Per PURE employee required to attend, per occurrence	when violations occur Costs associated with dispatch of Landlord or Agent representative for attendance at HOA meeting due to Tenant conduct.
Notice Posting Fee	\$100	Per Occurrence	Administrative fee associated with preparation and delivery of legal notices.
Legal Action Coordination, Representation and Debt Collection Administration	As allowed by law and contract, including recoverable attorneys' fees.	Per Occurrence	Administrative costs associated with preparation, appearance, testimony, and facilitation of unlawful detainer or other legal actions necessitated by tenants' improper actions or behavior
Lease Modification Fee	\$250 plus application screening fees (if required)	Per Occurrence	Administrative costs for the process of evaluating viability of proposed change(s), making the necessary tenant screening decisions (if required), and creating any necessary Lease revisions. Charged when a scheduled
Denial of Access Charge	\$100	Per Occurrence	maintenance/service call or property visit cannot be completed due to tenant actions
Unjustified or Tenant-Caused Maintenance Service Charges	Actual Cost	Per Occurrence	Charged when a resident either generates a service call for something that was unwarranted, or when the cause of a specific maintenance repair need was due to resident behavior or decisions
Unauthorized Pet Processing Fee	\$75 plus Petscreening fee	Per animal	Administrative costs to ensure completion of the necessary screening through Petscreening, plus making the necessary contract changes (NOTE: pets added to contract may result in separate, additional monthly charges or other costs)

9.29 TENANT'S RIGHTS IN THE EVENT OF A FORECLOSURE

Tenant's rights under the PROTECTING TENANTS AT FORECLOSURE ACT:

In the event of foreclosure, a "bona fide" Tenant may remain in the property for the remainder of the Agreement unless one of the following exceptions apply:

1. the Tenant is occupying the property without an Agreement;
2. the Tenant has an Agreement terminable at will under state law;
3. the Landlord acquiring the property intends to occupy it as a primary residence or the new

Landlord who was not occupying the property subsequently sells the property to someone who intends to occupy the property.

If any of these exceptions apply, the Tenant must nevertheless be given at least 90 days advance notice that they must vacate the property

CRITERIA FOR COVERAGE UNDER THE ACT:

The Act applies to tenancies entered into before the notice of foreclosure is received by the Landlord. In order for a Tenant to avail him/herself of the protections afforded by the Act, certain criteria must be met: 1) the Tenant must be current on his/her rent payments and; 2) the Tenant and Agreement must be "bona fide". The term "bona fide Tenant" means that the Tenant is not the original borrower on the foreclosed lien or the spouse, child or parent of the borrower. The term "bona fide Agreement" means that the Agreement was a result of an arms-length transaction and that the rent being paid is substantially equal to fair market value and is not being reduced due to, or subsidized by, a federal, state or local subsidy. The term "arms-length transaction" generally means that the Agreement was negotiated by unrelated parties looking out for their own interests. By way of example, a Tenant who is receiving a special discount or special terms because they are related to, or are friends with, the owner/landlord may not have a "bona fide Agreement". If the Tenant fails to pay his/her rent, the Tenant may not avail him/herself of the protections of the Act and can be evicted without the 90-day notice. However, such eviction would still have to comply with state law.

INFORMATION ON FORECLOSURE

The county clerk's office and the court clerk's office can provide information on whether a foreclosure action has been filed against property. Additionally, the court clerk's office can provide the status of the lawsuit. When a foreclosure action is filed in court, the lender also files a "Notice of Lis Pendens" in the county clerk's office of the county in which the property is located. You will need the property address to locate this information. You may monitor the progress of the civil court foreclosure action through the district court clerk's office of the county in which the property is located. The court clerk's office information may also be obtained on-line at www.nmcourts.gov/caselookup/app. You will need the name of the Landlord of the property to access information through the court clerk's office.

ANSWERS TO TENANT'S IMPORTANT QUESTIONS

Am I permitted to terminate my Agreement once a foreclosure action is filed against the Landlord?

Unless your Agreement says otherwise, the filing of a foreclosure action in of itself does not allow you to break the Agreement. If you breach your Agreement, the owner or landlord may pursue legal action for damages. Of course, this does not preclude you from negotiating (where both parties agree) an early termination of the Agreement.

Is my landlord still required to perform his/her obligations under our Agreement while the property goes through the foreclosure process?

Yes. Until the court approves the Sale, your landlord must still fulfill all of his/her obligations as required by the Agreement and the New Mexico Owner Resident Relations Act, including, but not limited to making all repairs, paying utilities (if provided in the Agreement) and maintaining the property.

What happens once the Sheriff's Sale takes place?

At this point, the landlord or owner is no longer permitted to collect rent from you unless, in the case of a property manager, s/he has entered into an agreement with the new Landlord to do so. Still, you

should continue to set aside money for rent. You will most likely not be notified when the Sheriff's Sale takes place, so check the progress of the case with the local district court (watch for the filing of the Court order confirming the Sale). Once the Sale is confirmed, the new Landlord will "step into the shoes" of the old Landlord or landlord relative to the lease or Agreement. You will then make all rental payments to the new Landlord or landlord who should inform you as to where rental payments should be sent.

Will the terms of my Agreement change after the property is sold at the Sale?

No, the new Landlord is not permitted to make changes to the terms of your original Agreement without your approval.

After foreclosure, may I vacate the property before the expiration of my lease or the 90 days?

Yes. The Act allows you to remain in the property for some period of time after a foreclosure. However, this does not preclude you from vacating whenever you wish to after the new Landlord purchases the property at the Sale. Sometimes, the new Landlord or landlord will offer to you compensation to vacate the property early, either before the 90-day period or before your lease has expired, whichever is applicable. This is sometimes referred to as "cash for keys". You are not required to accept the offer of the new Landlord or landlord to vacate early; however, if you are able to do so and find the new landlord's offer reasonable under the circumstances, you may decide to do so.

What happens to my security deposit when the property goes into foreclosure?

Unless the original person or entity with whom/which you entered into the Agreement transferred the security deposit to the new Landlord, it is his/her/its responsibility to return the security deposit to you, even after the property has been sold at the Sale. If the security deposit was transferred, the new Landlord then has the same obligations as the previous landlord and must return the deposit or provide a written accounting.

Does the former landlord have the right to withhold any part of the security deposit after foreclosure?

Most likely not. The former landlord does not have the right to walk through the property to verify the condition of the premises at the time you vacate the property. Therefore, s/he has no right to claim damages to the property or to withhold any part of the deposit to apply to physical damage to the property. However, the deposit may be applied towards unpaid rent, utilities, repair work or other damages the owner or landlord incurred prior to the Sale. If the previous owner or landlord retains all or part of the deposit for any of these reasons, s/ he must provide you with an accounting within 30 days of the termination of your tenancy.

FOR FURTHER INFORMATION ON TENANT'S RIGHTS AND OBLIGATIONS AFTER FORECLOSURE, PLEASE CONTACT AN ATTORNEY

By signing below, you acknowledge and agree to the terms in Section 9.

X

Lessee

Taylor A. Bathel

10. SAN DIEGO LOCAL LAW ADDENDUM

10.1 DISCLOSURE

NOTICE TO TENANT OF RESIDENTIAL TENANT PROTECTIONS

Pursuant to San Diego Municipal Code § 98.0705, Tenant is hereby notified that:

- California law limits the amount your rent can be increased. See California Civil Code section 1947.12 for more information. Local law also provides that a landlord shall provide a statement of cause in any notice to terminate a tenancy. In some circumstances, tenants who are seniors (62 years or older) or disabled may be entitled to additional tenant protections. See Chapter 9, Article 8, Division 7 of the San Diego Municipal Code for more information.

Additionally, Landlord and Tenant acknowledge that Landlord has provided Tenant with a copy of the “Tenant Protection Guide” as required by San Diego local law.

By signing below, you acknowledge and agree to the terms in Section 10.

X

Lessee

Taylor A. Bathel



Information on Dampness and Mold for Renters in California

Main points:

- Living in damp or moldy buildings increases the chances of respiratory problems like asthma.
- The critical warning signs are visible mold, water damage, damp materials, or mold smell.
- Dampness is needed for mold to grow, so if you control the dampness, you control the mold.
- Dampness or mold indoors may make housing substandard, per the California Health & Safety Code.



Beginning January 1, 2022, residential landlords shall provide this booklet to prospective residential tenants prior to entering the rental or lease agreement, in accordance with the 2001 Toxic Mold Protection Act (HSC #26148). This booklet, which explains the potential health risks and health impacts that may result from exposure to mold, was produced by the California Department of Public Health (CDPH) in 2020, in both English and Spanish versions.

Health Problems from Damp or Moldy Buildings

Living or working in damp or moldy buildings increases the risk of many harmful health problems, including:

- asthma attacks in people who already have asthma
- a new asthma diagnosis
- respiratory infections, such as bronchitis
- breathing symptoms, such as hay fever, sneezing, stuffy nose, sore throat, wheezing, breathing difficulty, or cough
- eczema or skin rash

Mold can affect people differently. How much a person is affected depends on how sensitive they are and on how much they are exposed. Damp or moldy buildings are linked to health problems in people even if they do not have allergies.

Signs of Dampness or Mold

Signs of dampness or mold that may cause health problems include:

- **visible mold** (regardless of color), such as on walls or ceilings, behind furniture or appliances, under carpets, or even hidden in areas not seen in the occupied areas of homes
- **mold odor**, noticed as an earthy, musty, or moldy smell
- **visible water damage**, such as water-stains or discoloration on walls or ceilings, peeling or bubbled paint, warped floors, or rotting wood
- **damp or moist materials**, including condensation on windows or walls

Any one of these signs indicates increased risks to health, and the more that any of them are present, the greater the risk of health problems. Tests that identify the types of mold or the amounts of mold in buildings are not useful in telling us about the health risks. This is *why CDPH does not recommend testing for mold, such as measuring mold spores in the air.*



Causes of Building Dampness that Can Allow Mold to Grow

The dampness that is necessary for indoor mold to grow can come from either inside or outside a building.

Indoor sources include:

- leaking or burst water pipes, for instance under sinks inside walls
- not enough venting to the outside by open windows or exhaust fans in places where water is used or moisture is produced (for example, bathrooms, laundry areas, kitchens, and water heaters)
- condensation (water droplets) on cold surfaces, including windows

Outdoor sources include:

- water coming in through leaky roofs or poorly-sealed windows, or from flooding
- damp, exposed dirt in crawl spaces
- outdoor surfaces that slope and drain water toward a building, including from a downspout



Fixing Dampness and Mold Problems

The California Health & Safety Code (HSC §17920.3) says that when dampness or visible mold (or certain other conditions) in a home is a hazard to the health of occupants, the home is *substandard* and the property owner must fix the conditions. The Code excludes mold that is “minor and found on surfaces that accumulate moisture as part of their properly functioning and intended use.”

CDPH recommends fixing dampness and mold problems as follows:

- identifying and correcting the source of any water that may allow mold to grow
- rapid drying or removal of damp materials
- cleaning or removing mold and moldy materials as rapidly and safely as possible

Note: if a moldy area is simply bleached, cleaned, or painted over—without fixing the source of the dampness—the mold is likely to grow again.

Renters in California

The California Health & Safety Code requires property owners to provide a rental unit that is safe and healthy for the people living in it. Prospective renters should look for obvious conditions that show dampness or mold, and also less obvious signs like water leaks under the kitchen and bathroom sinks or moldy odor in a sealed-up home. Also look for conditions likely to cause future problems, like a bathroom that has no working vent fan or no window that opens, or a clothes dryer without an outside vent.

For renters who suspect there is dampness or mold:

1. Tell the property owner or manager. Early detection and correction of the dampness and mold problems can reduce the risks to your health and prevent the problem from getting worse.
2. If your property owner will not respond to your concerns in a reasonable amount of time, contact your local (city or county) code enforcement agency and ask for a code enforcement officer to inspect for violations. Many dampness or mold problems in rental homes are the responsibility of the property owner and must be addressed by them. However, a code enforcement officer may determine that dampness or mold in a building results from a tenant's actions or inactions – for instance, not using available bathroom ventilation during showers.
3. If the local inspector determines there is a violation, they can require the property owner to correct the problem.

Additional Resources

For general information on dampness and mold and a list of local code enforcement agencies, with a focus on dampness and mold, see www.cdph.ca.gov/iaq/mold. To see an animated video series, Mold in the Home, visit www.cdph.ca.gov/mold.

Property owners must provide a rental unit that is safe and healthy for the people living in it.

Tenants must notify property owners of any dampness or mold problems.

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PURE_-_Mold_CDPH_Booklet_rev_2021_.pdf

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Lessee

Taylor A. Bathel

12. Sign and Accept

12.1 SIGNATURES AND ACCEPTANCE.

This is a legally binding document. Read it carefully before signing. By signing your name, even if done by electronic means, you are accepting the terms of this lease and the included and attached addenda. You will receive a printed contract for your records.

X

Lessee

Taylor A. Bathel

X

Lessor